

THE FIRST SCHEDULE

CLASSIFICATION OF OFFENCES

EXPLANATORY NOTES: (1) In regard to offences under the Bharatiya Nyaya Sanhita, the entries in the second and third columns against a section the number of which is given in the first column are not intended as the definition of, and the punishment prescribed for, the offence in the Bharatiya Nyaya Sanhita, but merely as indication of the substance of the section.

(2) In this Schedule, (i) the expression "Magistrate of the first class" and "any Magistrate" does not include Executive Magistrates; (ii) the word "cognizable" stands for "a police officer may arrest without warrant"; and (iii) the word "non-cognizable" stands for "a police officer shall not arrest without warrant".

I.—OFFENCES UNDER THE BHARATIYA NYAYA SANHITA

Section	Offence	Punishment	Cognizable or Non-cognizable	Bailable or Non-bailable	By what Court triable
1	2	3	4	5	6
49	Abetment of any offence, if the act abetted is committed in consequence, and where no express provision is made for its punishment.	Same as for offence abetted.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
50	Abetment of any offence, if the person abetted does act with different intention from that of abettor.	Same as for offence abetted.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
51	Abetment of any offence, when one act is abetted and a different act is done; subject to the proviso.	Same as for offence intended to be abetted.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
52	Abettor when liable to cumulative punishment for act abetted and for act done.	Same as for offence abetted.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
53	Abetment of any offence, when an effect is caused by the act abetted different from that intended by the abettor.	Same as for offence committed.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
54	Abetment of any offence, if abettor present when offence is committed.	Same as for offence committed.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
55	Abetment of an offence, punishable with death or imprisonment for life, if the offence be not committed in consequence of the abetment.	Imprisonment for 7 years and fine.	According as offence abetted is cognizable or non-cognizable.	Non-bailable.	Court by which offence abetted is triable.
	If an act which causes harm to be done in consequence of the abetment.	Imprisonment for 14 years and fine.	According as offence abetted is cognizable or non-cognizable.	Non-bailable.	Court by which offence abetted is triable.
56	Abetment of an offence, punishable with imprisonment, if the offence be not committed in consequence of the abetment.	Imprisonment extending to one-fourth of the longest term provided for the offence, or fine, or both.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.

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	If the abettor or the person abetted be a public servant whose duty it is to prevent the offence.	Imprisonment extending to one-half of the longest term provided for the offence, or fine, or both.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
57	Abetting commission of an offence by the public or by more than ten persons.	Imprisonment which may extend to 7 years and fine.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
58 (a)	Concealing design to commit offence punishable with death or imprisonment for life, if the offence be committed.	Imprisonment for 7 years and fine.	According as offence abetted is cognizable or non-cognizable.	Non-bailable.	Court by which offence abetted is triable.
58(b)	If offence be not committed.	Imprisonment for 3 years and fine.	According as offence abetted is cognizable or non-cognizable.	Bailable.	Court by which offence abetted is triable.
59(a)	A public servant concealing a design to commit an offence which it is his duty to prevent, if the offence be committed.	Imprisonment extending to one-half of the longest term provided for the offence, or fine, or both.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
59(b)	If the offence be punishable with death or imprisonment for life.	Imprisonment for 10 years.	According as offence abetted is cognizable or non-cognizable.	Non-bailable.	Court by which offence abetted is triable.
59(c)	If the offence be not committed.	Imprisonment extending to one-fourth of the longest term provided for the offence, or fine, or both.	According as offence abetted is cognizable or non-cognizable.	Bailable.	Court by which offence abetted is triable.
60(a)	Concealing a design to commit an offence punishable with imprisonment, if offence be committed.	Imprisonment extending to one-fourth of the longest term provided for the offence, or fine, or both.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
60(b)	If the offence be not committed.	Imprisonment extending to one-eighth part of the longest term provided for the offence, or fine, or both.	According as offence abetted is cognizable or non-cognizable.	Bailable.	Court by which offence abetted is triable.
61(2)(a)	Criminal conspiracy to commit an offence punishable with death, imprisonment for life or rigorous imprisonment for a term of 2 years or upwards.	Same as for abetment of the offence which is the object of the conspiracy.	According as the offence which is the object of conspiracy is cognizable or non-cognizable.	According as offence which is object of conspiracy is bailable or non-bailable.	Court by which abetment of the offence which is the object of conspiracy is triable.
61(2)(b)	Any other criminal conspiracy.	Imprisonment for 6 months, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
62	Attempting to commit offence punishable with imprisonment for life, or imprisonment, and in such attempt doing any act towards the commission of the offence.	One half of the imprisonment for life, or imprisonment not exceeding one-half of the longest term, provided for the offence, or fine, or both.	According as the offence is cognizable or non-cognizable.	According as the offence attempted by the offender is bailable or non-bailable.	The court by which the offence attempted is triable.
64(1)	Rape.	Rigorous imprisonment for not less than 10 years but which may extend to imprisonment for life, and fine.	Cognizable.	Non-bailable.	Court of Session.

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64(2)	Rape by a police officer or a public servant or member of armed forces or a person being on the management or on the staff of a jail, remand home or other place of custody or women's or children's institution or by a person on the management or on the staff of a hospital, and rape committed by a person in a position of trust or authority towards the person raped or by a near relative of the person raped.	Rigorous imprisonment for not less than 10 years but which may extend to imprisonment for life which shall mean the remainder of that person's natural life and fine.	Cognizable.	Non-bailable.	Court of Session.
65(1)	Persons committing offence of rape on a woman under sixteen years of age.	Rigorous imprisonment for not less than 20 years but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life and fine.	Cognizable.	Non-bailable.	Court of Session.
65(2)	Persons committing offence of rape on a woman under twelve years of age.	Rigorous imprisonment for not less than 20 years but which may extend to imprisonment for life which shall mean imprisonment for the remainder of that person's natural life and with fine or death.	Cognizable.	Non-bailable.	Court of Session.
66	Person committing an offence of rape and inflicting injury which causes death or causes the woman to be in a persistent vegetative state.	Rigorous imprisonment for not less than 20 years but which may extend to imprisonment for life which shall mean imprisonment for the remainder of that person's natural life or death.	Cognizable.	Non-bailable.	Court of Session.
67	Sexual intercourse by husband upon his wife during separation.	Imprisonment for not less than 2 years but which may extend to 7 years and fine.	Cognizable (only on the complaint of the victim).	Bailable.	Court of Session.
68	Sexual intercourse by a person in authority, etc.	Rigorous imprisonment for not less than 5 years, but which may extend to 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
69	Sexual intercourse by employing deceitful means, etc.	Imprisonment which may extend to 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
70(1)	Gang rape.	Rigorous imprisonment for not less than 20 years but which may extend to imprisonment for life which shall mean imprisonment for the remainder of that person's natural life and fine.	Cognizable.	Non-bailable.	Court of Session.

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70(2)	Gang rape on a woman under eighteen years of age.	Imprisonment for life which shall mean imprisonment for the remainder of that person's natural life and with fine or with death.	Cognizable.	Non-bailable.	Court of Session.
71	Repeat offenders.	Imprisonment for life which shall mean imprisonment for the remainder of that person's natural life or with death.	Cognizable.	Non-bailable.	Court of Session.
72(1)	Disclosure of identity of the victim of certain offences, etc.	Imprisonment for 2 years and fine.	Cognizable.	Bailable.	Any Magistrate.
73	Printing or publication of a proceeding without prior permission of court.	Imprisonment for 2 years and fine.	Cognizable.	Bailable.	Any Magistrate.
74	Assault or use of criminal force to woman with intent to outrage her modesty.	Imprisonment for 1 year which may extend to 5 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
75(2)	Sexual harassment and punishment for sexual harassment specified in clause (i) or clause (ii) or clause (iii) of sub-section (1).	Rigorous imprisonment with 3 years, or fine, or both.	Cognizable.	Non-bailable.	Court of Session.
75(3)	Sexual harassment and punishment for sexual harassment specified in clause (iv) of sub-section (1).	Imprisonment for 1 year, or fine, or both.	Cognizable.	Non-bailable.	Court of Session.
76	Assault or use of criminal force to woman with intent to disrobe.	Imprisonment for not less than 3 years but which may extend to 7 years and fine.	Cognizable.	Non-bailable.	Court of Session.
77	Voyeurism.	Imprisonment for not less than 1 year but which may extend to 3 years and fine.	Cognizable.	Bailable.	Court of Session.
	Second or subsequent conviction.	Imprisonment for not less than 3 years but which may extend to 7 years and fine.	Cognizable.	Non-bailable.	Court of Session.
78(2)	Stalking.	Imprisonment up to 3 years and fine.	Cognizable.	Bailable.	Any Magistrate.
	Second or subsequent conviction.	Imprisonment up to 5 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
79	Uttering any word or making any gesture intended to insult the modesty of a woman, etc.	Simple imprisonment for 3 years and fine.	Cognizable.	Bailable.	Any Magistrate.
80(2)	Dowry death.	Imprisonment for not less than 7 years but which may extend to imprisonment for life.	Cognizable.	Non-bailable.	Court of Session.
81	A man by deceit causing a woman not lawfully married to him to believe, that she is lawfully married to him and to cohabit with him in that belief.	Imprisonment for 10 years and fine.	Non-cognizable.	Non-bailable.	Magistrate of the first class.

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82(1)	Marrying again during the life time of a husband or wife.	Imprisonment for 7 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
82(2)	Same offence with concealment of the former marriage from the person with whom subsequent marriage is contracted.	Imprisonment for 10 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
83	A person with fraudulent intention going through the ceremony of being married, knowing that he is not thereby lawfully married.	Imprisonment up to 7 years and fine.	Non-cognizable.	Non-bailable.	Magistrate of the first class.
84	Enticing or taking away or detaining with a criminal intent a married woman.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
85	Punishment for subjecting a married woman to cruelty.	Imprisonment for 3 years and fine.	Cognizable if information relating to the commission of the offence is given to an officer in charge of a police station by the person aggrieved by the offence or by any person related to her by blood, marriage or adoption or if there is no such relative, by any public servant belonging to such class or category as may be notified by the State Government in this behalf.	Non-bailable.	Magistrate of the first class.
87	Kidnapping, abducting or inducing woman to compel her marriage, etc.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
88	Causing miscarriage.	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
	If the woman be quick with child.	Imprisonment for 7 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
89	Causing miscarriage without women's consent.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
90(1)	Death caused by an act done with intent to cause miscarriage.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
90(2)	If act done without women's consent.	Imprisonment for life, or as above.	Cognizable.	Non-bailable.	Court of Session.
91	Act done with intent to prevent a child being born alive, or to cause it to die after its birth.	Imprisonment for 10 years, or fine, or both.	Cognizable.	Non-bailable.	Court of Session.
92	Causing death of a quick unborn child by an act amounting to culpable homicide.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.

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93	Exposure of a child under 12 years of age by parent or person having care of it with intention of wholly abandoning it.	Imprisonment for 7 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
94	Concealment of birth by secret disposal of dead body.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
95	Hiring, employing or engaging a child to commit an offence.	Imprisonment for not less than 3 years but which may extend to 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
	If offence be committed.	Same as for the offence committed.	Cognizable.	Non-bailable.	Court by which offence committed is triable.
96	Procuration of child.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
97	Kidnapping or abducting a child under ten years with intent to steal from its person.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
98	Selling child for purposes of prostitution, etc.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
99	Buying child for purposes of prostitution, etc.	Imprisonment for not less than 7 years but which may extend to 14 years and fine.	Cognizable.	Non-bailable.	Court of Session.
103(1)	Murder.	Death or imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
103(2)	Murder by group of five or more persons.	Death or with imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
104	Murder by life-convict.	Death or imprisonment for life, which shall mean the remainder of that person's natural life.	Cognizable.	Non-bailable.	Court of Session.
105	Culpable homicide not amounting to murder, if act by which the death is caused is done with intention of causing death, etc.	Imprisonment for life, or Imprisonment for not less than 5 years but which may extend to 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
	If act be done with knowledge that it is likely to cause death, but without any intention to cause death, etc.	Imprisonment for 10 years and with fine.	Cognizable.	Non-bailable.	Court of Session.
106(1)	Causing death by negligence.	Imprisonment for 5 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
	Causing death by negligence by registered medical practitioner.	Imprisonment for 2 years and fine	Cognizable.	Bailable.	Magistrate of the first class.
106(2)	Causing death by rash and negligent driving of vehicle and escaping.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
107	Abetment of suicide of child or person of unsound mind, etc.	Death, or imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
108	Abetment of suicide.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
109(1)	Attempt to murder.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.

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	If such act causes hurt to any person.	Imprisonment for life, or as above.	Cognizable.	Non-bailable.	Court of Session.
109(2)	Attempt by life-convict to murder, if hurt is caused.	Death, or imprisonment for life which shall mean the remainder of that person's natural life.	Cognizable.	Non-bailable.	Court of Session.
110	Attempt to commit culpable homicide.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Non-bailable.	Court of Session.
	If such act causes hurt to any person.	Imprisonment for 7 years, or fine, or both.	Cognizable.	Non-bailable.	Court of Session.
111(2)(a)	Organised crime resulting in death of any person.	Death or imprisonment for life and fine of not less than 10 lakh rupees.	Cognizable.	Non-bailable.	Court of Session.
111(2)(b)	In any other case.	Imprisonment for not less than 5 years but which may extend to imprisonment for life and fine of not less than 5 lakh rupees.	Cognizable.	Non-bailable.	Court of Session.
111(3)	Abetting, attempting, conspiring or knowingly facilitating the commission of organised crime.	Imprisonment for not less than 5 years but which may extend to imprisonment for life and fine of not less than 5 lakh rupees.	Cognizable.	Non-bailable.	Court of Session.
111(4)	Being a member of an organised crime syndicate.	Imprisonment for not less than 5 years but which may extend to imprisonment for life and fine of not less than 5 lakh rupees.	Cognizable.	Non-bailable.	Court of Session.
111(5)	Intentionally harbouring or concealing any person who committed offence of organised crime.	Imprisonment for not less than 3 years but which may extend to imprisonment for life and fine of not less than 5 lakh rupees.	Cognizable.	Non-bailable.	Court of Session.
111(6)	Possessing property derived, or obtained from the commission of organised crime.	Imprisonment for not less than 3 years but which may extend to imprisonment for life and fine of not less than 2 lakh rupees.	Cognizable.	Non-bailable.	Court of Session.
111(7)	Possessing property on behalf of a member of an organised crime syndicate.	Imprisonment for not less than 3 years but which may extend to imprisonment for 10 years and fine of not less than 1 lakh rupees.	Cognizable.	Non-bailable.	Court of Session.
112	Petty Organised crime.	Imprisonment for not less than 1 year but which may extend to 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
113(2)(a)	Terrorist act resulting in the death of any person.	Death or imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
113(2)(b)	In any other case.	Imprisonment for not less than 5 years but which may extend to imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
113(3)	Conspiring, attempting, abetting, etc., or knowingly facilitating the commission of terrorist act.	Imprisonment for not less than 5 years but which may extend to imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.

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113(4)	Organising camps, training, etc., for commission of terrorist act.	Imprisonment for not less than 5 years but which may extend to imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
113(5)	Being a member of an organisation involved in terrorist act.	Imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
113(6)	Harbouring, concealing, etc., of any person who committed a terrorist act.	Imprisonment for not less than 3 years but which may extend to imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
113(7)	Possessing property derived or obtained from commission of terrorist act.	Imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
115(2)	Voluntarily causing hurt.	Imprisonment for 1 year or fine of 10,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
117(2)	Voluntarily causing grievous hurt.	Imprisonment for 7 years and fine.	Cognizable.	Bailable.	Any Magistrate.
117(3)	If hurt to results in permanent disability or persistent vegetative state.	Rigorous imprisonment for not less than 10 years but which may extend to imprisonment for life which shall mean the remainder of that person's natural life.	Cognizable.	Non-bailable.	Court of Session.
117(4)	Grievous hurt caused by a group of 5 or more persons.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Court of Session.
118(1)	Voluntarily causing hurt by dangerous weapons or means.	Imprisonment for 3 years, or fine of 20,000 rupees, or both.	Cognizable.	Non-bailable.	Any Magistrate.
118(2)	Voluntarily causing grievous hurt by dangerous weapons or means [except as provided in section 122(2)].	Imprisonment for life or imprisonment of not less than 1 year but which may extend to 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
119(1)	Voluntarily causing hurt to extort property, or to constrain to an illegal act.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
119(2)	Voluntarily causing grievous hurt for any purpose referred to in sub-section (1).	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
120(1)	Voluntarily causing hurt to extort confession or information, or to compel restoration of property, etc.	Imprisonment for 7 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
120(2)	Voluntarily causing grievous hurt to extort confession or information, or to compel restoration of property, etc.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
121(1)	Voluntarily causing hurt to deter public servant from his duty.	Imprisonment for 5 years, or fine, or both.	Cognizable.	Non-bailable.	Magistrate of the first class.
121(2)	Voluntarily causing grievous hurt to deter public servant from his duty.	Imprisonment not less than 1 year, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.

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122(1)	Voluntarily causing hurt on grave and sudden provocation, not intending to hurt any other than the person who gave the provocation.	Imprisonment for 1 month, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
122(2)	Causing grievous hurt on grave and sudden provocation, not intending to hurt any other than the person who gave the provocation.	Imprisonment for 5 years, or fine of 10,000 rupees, or both.	Cognizable.	Bailable.	Magistrate of the first class.
123	Causing hurt by means of poison, etc., with intent to commit an offence.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
124(1)	Voluntarily causing grievous hurt by use of acid, etc.	Imprisonment for not less than 10 years but which may extend to imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
124(2)	Voluntarily throwing or attempting to throw acid.	Imprisonment for 5 years but which may extend to 7 years and fine.	Cognizable.	Non-bailable.	Court of Session.
125	Doing any act endangering human life or personal safety of others.	Imprisonment for 3 months, or fine of 2,500 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
125(a)	Where hurt is caused.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
125(b)	Where grievous hurt is caused.	Imprisonment for 3 years, or fine of 10,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
126(2)	Wrongfully restraining any person.	Simple imprisonment for 1 month, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
127(2)	Wrongfully confining any person.	Imprisonment for 1 year, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
127(3)	Wrongfully confining for three or more days.	Imprisonment for 3 years, or fine of 10,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
127(4)	Wrongfully confining for 10 or more days.	Imprisonment for 5 years and fine of 10,000 rupees.	Cognizable.	Non-bailable.	Magistrate of the first class.
127(5)	Keeping any person in wrongful confinement, knowing that a writ has been issued for his liberation.	Imprisonment for 2 years in addition to any term of imprisonment to under any other section and fine.	Cognizable.	Bailable.	Magistrate of the first class.
127(6)	Wrongful confinement in secret.	Imprisonment for 3 years in addition to other punishment which he is liable to and fine.	Cognizable.	Bailable.	Magistrate of the first class.
127(7)	Wrongful confinement for the purpose of extorting property, or constraining to an illegal act, etc.	Imprisonment for 3 years and fine.	Cognizable.	Bailable.	Any Magistrate.
127(8)	Wrongful confinement for the purpose of extorting confession or information, or for compelling restoration of property, etc.	Imprisonment for 3 years and fine.	Cognizable.	Bailable.	Any Magistrate.

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131	Assault or criminal force otherwise than on grave provocation.	Imprisonment for 3 months, or fine of 1,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
132	Assault or use of criminal force to deter public servant from discharge of his duty.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Non-bailable.	Any Magistrate.
133	Assault or criminal force with intent to dishonour a person, otherwise than on grave and sudden provocation.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
134	Assault or criminal force in attempt to commit theft of property worn or carried by a person.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
135	Assault or use of criminal force in attempt wrongfully to confine a person.	Imprisonment for 1 year, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
136	Assault or use of criminal force on grave and sudden provocation.	Simple imprisonment for one month, or fine of 1,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
137(2)	Kidnapping.	Imprisonment for 7 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
139(1)	Kidnapping a child for purposes of begging.	Rigorous imprisonment not be less than 10 years but which may extend to imprisonment for life, and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
139(2)	Maiming a child for purposes of begging.	Imprisonment not be less than 20 years which may extend to remainder of that person's natural life, and fine.	Cognizable.	Non-bailable.	Court of Session.
140(1)	Kidnapping or abducting in order to murder.	Imprisonment for life, or rigorous imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
140(2)	Kidnapping for ransom, etc.	Death, or imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
140(3)	Kidnapping or abducting with intent secretly and wrongfully to confine a person.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
140(4)	Kidnapping or abducting in order to subject a person to grievous hurt, slavery, etc.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
141	Importation of a girl or boy from foreign country.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
142	Wrongfully concealing or keeping in confinement, kidnapped or abducted person.	Punishment for kidnapping or abduction.	Cognizable.	Non-bailable.	Court by which the kidnapping or abduction is triable.
143(2)	Trafficking of person.	Rigorous imprisonment for not less than 7 years but which may extend to 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
143(3)	Trafficking of more than one person.	Rigorous imprisonment for not less than 10 years but which may extend to imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.

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143(4)	Trafficking of a child.	Rigorous imprisonment for not less than 10 years but which may extend to imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
143(5)	Trafficking of more than one child.	Rigorous imprisonment for not less than 14 years but which may extend to imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
143(6)	Person convicted of offence of trafficking of child on more than one occasion.	Imprisonment for life which shall mean the remainder of that person's natural life and fine.	Cognizable.	Non-bailable.	Court of Session.
143(7)	Public servant or a police officer involved in trafficking of child.	Imprisonment for life which shall mean the remainder of that person's natural life and fine.	Cognizable.	Non-bailable.	Court of Session.
144(1)	Exploitation of a trafficked child.	Rigorous imprisonment for not less than 5 years but which may extend to 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
144(2)	Exploitation of a trafficked person.	Rigorous imprisonment for not less than 3 years but which may extend to 7 years and fine.	Cognizable.	Non-bailable.	Court of Session.
145	Habitual dealing in slaves.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
146	Unlawful compulsory labour.	Imprisonment for 1 year, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
147	Waging or attempting to wage war, or abetting the waging of war, against the Government of India.	Death, or imprisonment for life and fine.	Cognizable.	Non-bailable.	Court of Session.
148	Conspiring to commit certain offences against the State.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
149	Collecting arms, etc., with the intention of waging war against the Government of India.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
150	Concealing with intent to facilitate a design to wage war.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
151	Assaulting President, Governor, etc., with intent to compel or restrain the exercise of any lawful power.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Court of Session.
152	Act endangering sovereignty, unity and integrity of India.	Imprisonment for life, or imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Court of Session.
153	Waging war against Government of any foreign State at peace with the Government of India.	Imprisonment for life and fine, or imprisonment for 7 years and fine, or fine.	Cognizable.	Non-bailable.	Court of Session.
154	Committing depredation on the territories of any foreign state at peace with the Government of India.	Imprisonment for 7 years and fine, and forfeiture of certain property.	Cognizable.	Non-bailable.	Court of Session.

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155	Receiving property taken by war or depredation mentioned in sections 153 and 154.	Imprisonment for 7 years and fine, and forfeiture of certain property.	Cognizable.	Non-bailable.	Court of Session.
156	Public servant voluntarily allowing prisoner of state or war in his custody to escape.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
157	Public servant negligently suffering prisoner of State or war in his custody to escape.	Simple imprisonment for 3 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
158	Aiding escape of, rescuing or harbouring such prisoner.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
159	Abetting mutiny, or attempting to seduce an officer, soldier, sailor or airman from his allegiance or duty.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
160	Abetment of mutiny, if mutiny is committed in consequence thereof.	Death, or imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
161	Abetment of assault by an officer, soldier, sailor or airman on his superior officer, when in execution of his office.	Imprisonment for 3 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
162	Abetment of such assault, if the assault committed.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
163	Abetment of the desertion of an officer, soldier, sailor or airman.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
164	Harbouring deserter.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
165	Deserter concealed on board merchant vessel through negligence of master or person in charge thereof.	Fine of 3,000 rupees.	Non-cognizable.	Bailable.	Any Magistrate.
166	Abetment of act of insubordination by an officer, soldier, sailor or airman if the offence be committed in consequence.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
168	Wearing garb or carrying token used by soldier, sailor or airman.	Imprisonment for 3 months, or fine of 2,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
173	Bribery.	Imprisonment for 1 year or fine, or both, or if treating only, fine only.	Non-cognizable.	Bailable.	Magistrate of the first class.
174	Undue influence or personation at an election.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
175	False statement in connection with an election.	Fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
176	Illegal payments in connection with elections.	Fine of 10,000 rupees.	Non-cognizable.	Bailable.	Magistrate of the first class.

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177	Failure to keep election accounts.	Fine of 5,000 rupees.	Non-cognizable.	Bailable.	Magistrate of the first class.
178	Counterfeiting coins, government stamps, currency-notes or bank-notes.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
179	Using as genuine forged or counterfeit coin, Government stamp currency-notes or bank-notes.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
180	Possession of forged or counterfeit coin, Government stamp, currency-notes or bank-notes.	Imprisonment for 7 years, or fine, or both.	Cognizable.	Non-bailable.	Court of Session.
181	Making, buying, selling or possessing machinery, instrument or material for forging or counterfeiting coins, Government stamp, currency-notes or bank-notes.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
182(1)	Making or using documents resembling currency-notes or bank-notes.	Fine of 300 rupees.	Non-cognizable.	Bailable.	Any Magistrate.
182(2)	On refusal to disclose the name and address of the printer.	Fine of 600 rupees.	Non-cognizable.	Bailable.	Any Magistrate.
183	Effacing any writing from a substance bearing a Government stamp, removing from a document a stamp used for it, with intent to cause a loss to Government.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
184	Using a Government stamp known to have been before used.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
185	Erasure of mark denoting that stamps have been used.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
186	Fictitious stamps.	Fine of 200 rupees.	Cognizable.	Bailable.	Any Magistrate.
187	Person employed in a Mint causing coin to be of a different weight or composition from that fixed by law.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
188	Unlawfully taking from a Mint any coining instrument.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
189(2)	Being member of an unlawful assembly.	Imprisonment for 6 months, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
189(3)	Joining or continuing in an unlawful assembly, knowing that it has been commanded to disperse.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
189(4)	Joining an unlawful assembly armed with any deadly weapon.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.

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189(5)	Knowingly joining or continuing in any assembly of five or more persons after it has been commanded to disperse.	Imprisonment for 6 months, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
189(6)	Hiring, engaging or employing persons to take part in an unlawful assembly.	The same as for a member of such assembly, and for any offence committed by any member of such assembly.	Cognizable.	According as offence is bailable or non-bailable.	The Court by which the offence is triable.
189(7)	Harbouring persons hired for an unlawful assembly.	Imprisonment for 6 months, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
189(8)	Being hired to take part in an unlawful assembly or riot.	Imprisonment for 6 months, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
189(9)	Or to go armed.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
190	Every member of unlawful assembly guilty of offence committed in prosecution of common object.	The same as for the offence.	According as offence is cognizable or non-cognizable.	According as offence is bailable or non-bailable.	The Court by which the offence is triable.
191(2)	Rioting.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
191(3)	Rioting, armed with a deadly weapon.	Imprisonment for 5 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
192	Wantonly giving provocation with intent to cause riot, if rioting be committed.	Imprisonment for 1 year, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
	If not committed.	Imprisonment for 6 months, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
193(1)	Owner or occupier of land not giving information of riot, etc.	Fine of 1,000 rupees.	Non-cognizable.	Bailable.	Any Magistrate.
193(2)	Person for whose benefit or on whose behalf a riot takes place not using all lawful means to prevent it.	Fine.	Non-cognizable.	Bailable.	Any Magistrate.
193(3)	Agent of owner or occupier for whose benefit a riot is committed not using all lawful means to prevent it.	Fine.	Non-cognizable.	Bailable.	Any Magistrate.
194(2)	Committing affray.	Imprisonment for one month, or fine of 1,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
195(1)	Assaulting or obstructing public servant when suppressing riot, etc.	Imprisonment for 3 years, or fine not less than 25,000 rupees, or both.	Cognizable.	Bailable.	Magistrate of the first class.
195(2)	Threatening to assault or attempting to obstruct public servant when suppressing riot, etc.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
196(1)	Promoting enmity between different groups on ground of religion, race, place of birth, residence, language, etc., and doing acts prejudicial to maintenance of harmony.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Non-bailable.	Magistrate of the first class.

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196(2)	Promoting enmity between classes in place of worship, etc.	Imprisonment for 5 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
197(1)	Imputations, assertions prejudicial to national integration.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Non-bailable.	Magistrate of the first class.
197(2)	If committed in a place of public worship, etc.	Imprisonment for 5 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
198	Public servant disobeying direction of the law with intent to cause injury to any person.	Simple imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
199	Public servant disobeying direction under law.	Rigorous imprisonment for not less than 6 months which may extend to 2 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
200	Non-treatment of victim by hospital.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
201	Public servant framing an incorrect document with intent to cause injury.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
202	Public servant unlawfully engaging in trade.	Simple imprisonment for 1 year, or fine, or both, or community service.	Non-cognizable.	Bailable.	Magistrate of the first class.
203	Public servant unlawfully buying or bidding for property.	Simple imprisonment for 2 years, or fine, or both and confiscation of property, if purchased.	Non-cognizable.	Bailable.	Magistrate of the first class.
204	Personating a public servant.	Imprisonment for not less than 6 months but which may extend to 3 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
205	Wearing garb or carrying token used by public servant with fraudulent intent.	Imprisonment for 3 months, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
206(a)	Absconding to avoid service of summons or other proceeding from a public servant.	Simple imprisonment for 1 month, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
206(b)	If summons or notice require attendance in person, etc., in a Court.	Simple imprisonment for 6 months, or fine of 10,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
207(a)	Preventing service of summons or other proceeding, or preventing publication thereof.	Simple imprisonment for 1 month, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
207(b)	If summons, etc., require attendance in person, etc., in a Court.	Simple imprisonment for 6 months, or fine of 10,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
208(a)	Non-attendance in obedience to an order from public servant.	Simple imprisonment for 1 month, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
208(b)	If the order requires personal attendance, etc., in a Court.	Simple imprisonment for 6 months, or fine of 10,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.

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209	Non-appearance in response to a proclamation under section 84 of this Sanhita.	Imprisonment for 3 years, or fine, or both, or community service.	Cognizable.	Non-bailable.	Magistrate of the first class.
	In a case where declaration has been made under sub-section (4) of section 84 of this Sanhita pronouncing a person as proclaimed offender.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
210(a)	Omission to produce document to public servant by person legally bound to produce or deliver it.	Simple imprisonment for 1 month, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	The Court in which the offence is committed, subject to the provisions of Chapter XXVIII; or, if not committed, in a Court, any Magistrate.
210(b)	If the document is required to be produced in or delivered to a Court.	Simple imprisonment for 6 months, or fine of 10,000 rupees, or both.	Non-cognizable.	Bailable.	The Court in which the offence is committed, subject to the provisions of Chapter XXVIII; or, if not committed, in a Court, any Magistrate.
211(a)	Intentional omission to give notice or information to public servant by person legally bound to give it.	Simple imprisonment for 1 month, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
211(b)	If the notice or information required respects the commission of an offence, etc.	Simple imprisonment for 6 months, or fine of 10,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
211(c)	If the notice or information is required by an order passed under sub-section (1) of section 394 of this Sanhita.	Imprisonment for 6 months, or fine of 1,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
212(a)	Knowingly furnishing false information to public servant.	Simple imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
212(b)	If the information required respects the commission of an offence, etc.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
213	Refusing oath when duly required to take oath by a public servant.	Simple imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	The Court in which the offence is committed, subject to the provisions of Chapter XXVIII; or, if not committed, in a Court, any Magistrate.
214	Being legally bound to state truth, and refusing to answer public servant authorised to question.	Simple imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	The Court in which the offence is committed, subject to the provisions of Chapter XXVIII; or, if not committed, in a Court, any Magistrate.
215	Refusing to sign a statement made to a public servant when legally required to do so.	Simple imprisonment for 3 months, or fine of 3,000 rupees, or both.	Non-cognizable.	Bailable.	The Court in which the offence is committed, subject to the provisions of Chapter XXVIII; or, if not committed, in a Court, any Magistrate.

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216	Knowingly stating to a public servant on oath as true that which is false.	Imprisonment for 3 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
217	Giving false information to a public servant in order to cause him to use his lawful power to the injury or annoyance of any person.	Imprisonment for 1 year, or with fine of 10,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
218	Resistance to the taking of property by the lawful authority of a public servant.	Imprisonment for 6 months, or fine of 10,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
219	Obstructing sale of property offered for sale by authority of a public servant.	Imprisonment for 1 month, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
220	Illegal purchase or bid for property offered for sale by authority of public servant.	Imprisonment for 1 month, or fine of 200 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
221	Obstructing public servant in discharge of his public functions.	Imprisonment for 3 months, or fine of 2,500 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
222(a)	Omission to assist public servant when bound by law to give such assistance.	Simple imprisonment for 1 month, or fine of 2,500 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
222(b)	Wilfully neglecting to aid a public servant who demands aid in the execution of process, the prevention of offences, etc.	Simple imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
223(a)	Disobedience to an order lawfully promulgated by a public servant, if such disobedience causes obstruction, annoyance or injury to persons lawfully employed.	Simple imprisonment for 6 months, or fine of 2,500 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
223(b)	If such disobedience causes danger to human life, health or safety, or causes or tends to cause a riot or affray.	Imprisonment for 1 year, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
224	Threat of injury to public servant, etc.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
225	Threat of injury to induce person to refrain from applying for protection to public servant.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
226	Attempt to commit suicide to compel or restraint exercise of lawful power.	Imprisonment for 1 year, or fine, or both, or community service.	Non-cognizable.	Bailable.	Any Magistrate.
229(1)	Intentionally giving or fabricating false evidence in a judicial proceeding.	Imprisonment for 7 years and 10,000 rupees.	Non-cognizable.	Bailable.	Magistrate of the first class.
229(2)	Giving or fabricating false evidence in any other case.	Imprisonment for 3 years and 5,000 rupees.	Non-cognizable.	Bailable.	Any Magistrate.
230(1)	Giving or fabricating false evidence with intent to cause any person to be convicted of capital offence.	Imprisonment for life, or rigorous imprisonment for 10 years and 50,000 rupees.	Non-cognizable.	Non-bailable.	Court of Session.

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230(2)	If innocent person be thereby convicted and executed.	Death, or as above.	Non-cognizable.	Non-bailable.	Court of Session.
231	Giving or fabricating false evidence with intent to procure conviction of an offence punishable with imprisonment for life or with imprisonment for 7 years, or upwards.	The same as for the offence.	Non-cognizable.	Non-bailable.	Court of Session.
232(1)	Threatening any person to give false evidence.	Imprisonment for 7 years, or fine, or both.	Cognizable.	Non-bailable.	Court by which offence of giving false evidence is triable.
232(2)	If innocent person is convicted and sentenced in consequence of false evidence with death, or imprisonment for more than 7 years.	The same as for the offence.	Cognizable.	Non-bailable.	Court by which offence of giving false evidence is triable.
233	Using in a judicial proceeding evidence known to be false or fabricated.	The same as for giving or fabricating false evidence.	Non-cognizable.	According as offence of giving such evidence is bailable or non-bailable.	Court by which offence of giving or fabricating false evidence is triable.
234	Knowingly issuing or signing a false certificate relating to any fact of which such certificate is by law admissible in evidence.	The same as for giving false evidence.	Non-cognizable.	Bailable.	Court by which offence of giving false evidence is triable.
235	Using as a true certificate one known to be false in a material point.	The same as for giving false evidence.	Non-cognizable.	Bailable.	Court by which offence of giving false evidence is triable.
236	False statement made in any declaration which is by law receivable as evidence.	The same as for giving false evidence.	Non-cognizable.	Bailable.	Court by which offence of giving false evidence is triable.
237	Using as true any such declaration known to be false.	The same as for giving false evidence.	Non-cognizable.	Bailable.	Court by which offence of giving false evidence is triable.
238(a)	Causing disappearance of evidence of an offence committed, or giving false information touching it to screen the offender, if a capital offence.	Imprisonment for 7 years and fine.	According as the offence in relation to which disappearance of evidence is caused is cognizable or non-cognizable.	Bailable.	Court of Session.
238(b)	If punishable with imprisonment for life or imprisonment for 10 years.	Imprisonment for 3 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
238(c)	If punishable with less than 10 years' imprisonment.	Imprisonment for one-fourth of the longest term provided for the offence, or fine, or both.	Non-cognizable.	Bailable.	Court by which the offence is triable.
239	Intentional omission to give information of an offence by a person legally bound to inform.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
240	Giving false information respecting an offence committed.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
241	Secreting or destroying any document to prevent its production as evidence.	Imprisonment for 3 years, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.

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242	False personation for the purpose of any act or proceeding in a suit or criminal prosecution, or for becoming bail or security.	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
243	Fraudulent removal or concealment, etc., of property to prevent its seizure as a forfeiture or in satisfaction of a fine under sentence, or in execution of a decree.	Imprisonment for 3 years, or fine, of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
244	Claiming property without right, or practising deception touching any right to it, to prevent its being taken as a forfeiture, or in satisfaction of a fine under sentence, or in execution of a decree.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
245	Fraudulently suffering a decree to pass for a sum not due, or suffering decree to be executed after it has been satisfied.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
246	False claim in a Court.	Imprisonment for 2 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
247	Fraudulently obtaining a decree for a sum not due, or causing a decree to be executed after it has been satisfied.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
248(a)	False charge of offence made with intent to injure.	Imprisonment for 5 years, or fine of 2 lakh rupees, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
248(b)	Criminal proceeding instituted on a false charge of an offence punishable with death, imprisonment for life, or imprisonment for ten years or upwards.	Imprisonment for 10 years and fine.	Non-cognizable.	Bailable.	Court of Session.
249(a)	Harbouring an offender, if the offence is punishable with death.	Imprisonment for 5 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
249(b)	If punishable with imprisonment for life or with imprisonment for 10 years.	Imprisonment for 3 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
249(c)	If punishable with imprisonment for 1 year and not for 10 years.	Imprisonment for one-fourth of the longest term, and of the descriptions, provided for the offence, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
250(a)	Taking gift, etc., to screen an offender from punishment if the offence is punishable with death.	Imprisonment for 7 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.

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250(b)	If punishable with imprisonment for life or with imprisonment for 10 years.	Imprisonment for 3 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
250(c)	If punishable with imprisonment for less than 10 years.	Imprisonment for one-fourth of the longest term provided for the offence, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
251(a)	Offering gift or restoration of property in consideration of screening offender if the offence is punishable with death.	Imprisonment for 7 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
251(b)	If punishable with imprisonment for life or with imprisonment for 10 years.	Imprisonment for 3 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
251(c)	If punishable with imprisonment for less than 10 years.	Imprisonment for one-fourth of the longest term, provided for the offence, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
252	Taking gift to help to recover movable property of which a person has been deprived by an offence without causing apprehension of offender.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
253(a)	Harbouring an offender who has escaped from custody, or whose apprehension has been ordered, if the offence is punishable with death.	Imprisonment for 7 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
253(b)	If punishable with imprisonment for life or with imprisonment for 10 years.	Imprisonment for 3 years, with or without fine.	Cognizable.	Bailable.	Magistrate of the first class.
253(c)	If punishable with imprisonment for 1 year and not for 10 years.	Imprisonment for one-fourth of the longest term provided for the offence, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
254	Harbouring robbers or dacoits.	Rigorous imprisonment for 7 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
255	Public servant disobeying a direction of law with intent to save person from punishment, or property from forfeiture.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
256	Public servant framing an incorrect record or writing with intent to save person from punishment, or property from forfeiture.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
257	Public servant in a judicial proceeding corruptly making and pronouncing an order, report, etc. contrary to law.	Imprisonment for 7 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.

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258	Commitment for trial or confinement by a person having authority, who knows that he is acting contrary to law.	Imprisonment for 7 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
259(a)	Intentional omission to apprehend on the part of a public servant bound by law to apprehend an offender, if the offence is punishable with death.	Imprisonment for 7 years, with or without fine.	According as the offence in relation to which such omission has been made is cognizable or non-cognizable.	Bailable.	Magistrate of the first class.
259(b)	If punishable with imprisonment for life or imprisonment for 10 years.	Imprisonment for 3 years, with or without fine.	Cognizable.	Bailable.	Magistrate of the first class.
259(c)	If punishable with imprisonment for less than 10 years.	Imprisonment for 2 years, with or without fine.	Cognizable.	Bailable.	Magistrate of the first class.
260(a)	Intentional omission to apprehend on the part of a public servant bound by law to apprehend person under sentence of a Court if under sentence of death.	Imprisonment for life, or imprisonment for 14 years, with or without fine.	Cognizable.	Non-bailable.	Court of Session.
260(b)	If under sentence of imprisonment for life or imprisonment for 10 years, or upwards.	Imprisonment for 7 years, with or without fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
260(c)	If under sentence of imprisonment for less than 10 years or lawfully committed to custody.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
261	Escape from confinement negligently suffered by a public servant.	Simple imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
262	Resistance or obstruction by a person to his lawful apprehension.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
263(a)	Resistance or obstruction to the lawful apprehension of any person, or rescuing him from lawful custody.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
263(b)	If charged with an offence punishable with imprisonment for life or imprisonment for 10 years.	Imprisonment for 3 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
263(c)	If charged with offence punishable with death.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
263(d)	If the person is sentenced to imprisonment for life, or imprisonment for 10 years, or upwards.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
263(e)	If under sentence of death.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
264	Omission to apprehend, or sufferance of escape on part of public servant, in cases not otherwise provided for:—				

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	(a) in case of intentional omission or sufferance;	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
	(b) in case of negligent omission or sufferance.	Simple imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
265	Resistance or obstruction to lawful apprehension, or escape or rescue in cases not otherwise provided for.	Imprisonment for 6 months, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
266	Violation of condition of remission of punishment.	Punishment of original sentence, or if part of the punishment has been undergone, the residue.	Cognizable.	Non-bailable.	The Court by which the original offence was triable.
267	Intentional insult or interruption to a public servant sitting in any stage of a judicial proceeding.	Simple imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	The Court in which the offence is committed, subject to the provisions of Chapter XXVIII; or, if not committed, in a Court, any Magistrate.
268	Personation of an assessor.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
269	Failure by person released on bond or bail bond to appear in Court.	Imprisonment for 1 year, or fine, or both.	Cognizable.	Non-bailable.	Any Magistrate.
271	Negligently doing any act known to be likely to spread infection of any disease dangerous to life.	Imprisonment for 6 months, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
272	Malignantly doing any act known to be likely to spread infection of any disease dangerous to life.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
273	Knowingly disobeying any quarantine rule.	Imprisonment for 6 months, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
274	Adulterating food or drink intended for sale, so as to make the same noxious.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
275	Selling any food or drink as food and drink, knowing the same to be noxious.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
276	Adulterating any drug or medical preparation intended for sale so as to lessen its efficacy, or to change its operation, or to make it noxious.	Imprisonment for 1 year, or fine of 5,000 rupees, or both.	Non-cognizable.	Non-bailable.	Any Magistrate.
277	Sale of adulterated drugs.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
278	Knowingly selling of drug as a different drug or preparation.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
279	Fouling water of public spring or reservoir.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
280	Making atmosphere noxious to health.	Fine of 1,000 rupees.	Non-cognizable.	Bailable.	Any Magistrate.

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281	Rash driving or riding on a public way.	Imprisonment for 6 months, or fine of 1,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
282	Rash navigation of vessel.	Imprisonment for 6 months, or fine of 10,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
283	Exhibition of a false light, mark or buoy.	Imprisonment for 7 years, and fine which shall not be less than 10,000 rupees.	Cognizable.	Bailable.	Magistrate of the first class.
284	Conveying person by water for hire in unsafe or overloaded vessel.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
285	Causing danger or obstruction in public way or line of navigation.	Fine of 5,000 rupees.	Cognizable.	Bailable.	Any Magistrate.
286	Negligent conduct with respect to poisonous substance.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
287	Negligent conduct with respect to fire or combustible matter.	Imprisonment for 6 months, or fine of 2,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
288	Negligent conduct with respect to explosive substance.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
289	Negligent conduct with respect to machinery.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
290	Negligent conduct with respect to pulling down, repairing or constructing buildings, etc.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.
291	Negligent conduct with respect to animal.	Imprisonment for 6 months, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
292	Committing public nuisance in cases not otherwise provided for.	Fine of 1,000 rupees.	Non-cognizable.	Bailable.	Any Magistrate.
293	Continuance of nuisance after injunction to discontinue.	Simple imprisonment for 6 months, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
294(2)	Sale, etc., of obscene books, etc.	On first conviction, with imprisonment for 2 years, and with fine of 5,000 rupees, and, in the event of second or subsequent conviction, with imprisonment for 5 years, and with fine of 10,000 rupees.	Cognizable.	Bailable.	Any Magistrate.
295	Sale, etc., of obscene objects to child.	On first conviction, with imprisonment for 3 years, and with fine of 2,000 rupees, and in the event of second or subsequent conviction, with imprisonment for 7 years, and with fine of 5,000 rupees.	Cognizable.	Bailable.	Any Magistrate.

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296	Obscene acts and songs.	Imprisonment for 3 months, or fine of 1,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
297(1)	Keeping a lottery office.	Imprisonment for 6 months, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
297(2)	Publishing proposals relating to lotteries.	Fine of 5,000 rupees.	Non-cognizable.	Bailable.	Any Magistrate.
298	Defiling, etc., place of worship, with intent to insult the religion of any class.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Non-bailable.	Any Magistrate.
299	Deliberate and malicious acts, intended to outrage religious feelings of any class by insulting its religion or religious beliefs.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Non-bailable.	Magistrate of the first class.
300	Disturbing religious assembly.	Imprisonment for 1 year, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
301	Trespassing on burial places, etc.	Imprisonment for 1 year, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
302	Uttering words, etc., with deliberate intent to wound religious feelings.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
303(2)	Theft.	Rigorous imprisonment for not be less than 1 year but which may extend to 5 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
	Where value of property is less than 5,000 rupees.	Upon return of the value of property or restoration of the stolen property, shall be punished with community service.	Non-cognizable.	Bailable.	Any Magistrate.
304(2)	Snatching.	Imprisonment for 3 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
305	Theft in a dwelling house, or means of transportation or place of worship, etc.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
306	Theft by clerk or servant of property in possession of master or employer.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
307	Theft after preparation made for causing death, hurt or restraint in order to the committing of theft.	Rigorous imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
308(2)	Extortion.	Imprisonment for 7 years, or fine, or both.	Cognizable.	Non-bailable.	Magistrate of the first class.
308(3)	Putting or attempting to put in fear of injury, in order to commit extortion.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
308(4)	Putting or attempting to put a person in fear of death or grievous hurt in order to commit extortion.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.

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308(5)	Extortion by putting a person in fear of death or grievous hurt.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
308(6)	Putting a person in fear of accusation of an offence punishable with death, imprisonment for life, or imprisonment for 10 years in order to commit extortion.	Imprisonment for 10 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
308(7)	Extortion by threat of accusation of an offence punishable with death, imprisonment for life, or imprisonment for 10 years.	Imprisonment for 10 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
309(4)	Robbery.	Rigorous imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
	If robbery committed on highway between sunset and sunrise.	Rigorous imprisonment for 14 years.	Cognizable.	Non-bailable.	Magistrate of the first class.
309(5)	Attempt to commit robbery.	Rigorous imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
309(6)	Causing hurt.	Imprisonment for life, or rigorous imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
310(2)	Dacoity.	Imprisonment for life, or rigorous imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
310(3)	Murder in dacoity.	Death, imprisonment for life, or rigorous imprisonment for not less than 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
310(4)	Making preparation to commit dacoity.	Rigorous imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
310(5)	Being one of five or more persons assembled for the purpose of committing dacoity.	Rigorous imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Court of Session.
310(6)	Belonging to a gang of persons associated for the purpose of habitually committing dacoity.	Imprisonment for life, or rigorous imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
311	Robbery or dacoity, with attempt to cause death or grievous hurt.	Imprisonment for not less than 7 years.	Cognizable.	Non-bailable.	Court of Session.
312	Attempt to commit robbery or dacoity when armed with deadly weapon.	Imprisonment for not less than 7 years.	Cognizable.	Non-bailable.	Court of Session.
313	Belonging to a wandering gang of persons associated for the purpose of habitually committing thefts.	Rigorous imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
314	Dishonest misappropriation of movable property, or converting it to one's own use.	Imprisonment of not less than 6 months but which may extend to 2 years and fine.	Non-cognizable.	Bailable.	Any Magistrate.
315	Dishonest misappropriation of property possessed by deceased person at the time of his death.	Imprisonment for 3 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.

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	If by clerk or person employed by deceased.	Imprisonment for 7 years.	Non-cognizable.	Bailable.	Magistrate of the first class.
316(2)	Criminal breach of trust.	Imprisonment for 5 years, or fine, or both.	Cognizable.	Non-bailable.	Magistrate of the first class.
316(3)	Criminal breach of trust by a carrier, wharfinger, etc.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
316(4)	Criminal breach of trust by a clerk or servant.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
316(5)	Criminal breach of trust by public servant or by banker, merchant or agent, etc.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
317(2)	Dishonestly receiving stolen property knowing it to be stolen.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Non-bailable.	Any Magistrate.
317(3)	Dishonestly receiving stolen property, knowing that it was obtained by dacoity.	Imprisonment for life, or rigorous imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
317(4)	Habitually dealing in stolen property.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
317(5)	Assisting in concealment or disposal of stolen property, knowing it to be stolen.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Non-bailable.	Any Magistrate.
318(2)	Cheating.	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
318(3)	Cheating a person whose interest the offender was bound, either by law or by legal contract, to protect.	Imprisonment for 5 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
318(4)	Cheating and dishonestly inducing delivery of property.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
319(2)	Cheating by personation.	Imprisonment for 5 years, or with fine, or with both.	Cognizable.	Bailable.	Any Magistrate.
320	Fraudulent removal or concealment of property, etc., to prevent distribution among creditors.	Imprisonment of not less than 6 months but which may extend to 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
321	Dishonest or fraudulently preventing from being made available for his creditors a debt or demand due to the offender.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
322	Dishonest or fraudulent execution of deed of transfer containing a false statement of consideration.	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
323	Fraudulent removal or concealment of property, of himself or any other person or assisting in the doing thereof, or dishonestly releasing any demand or claim to which he is entitled.	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.

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324(2)	Mischief.	Imprisonment for 6 months, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
324(3)	Mischief causing loss or damage to any property including property of Government or Local Authority.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
324(4)	Mischief causing loss or damage to the amount of twenty thousand rupees but less than 2 lakh rupees.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
324(5)	Mischief causing loss or damage to the amount of one lakh rupees or upwards.	Imprisonment for 5 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
324(6)	Mischief with preparation for causing to any person death, or hurt, or wrongful restraint, or fear of death, or of hurt, or of wrongful restraint.	Imprisonment for 5 years, and fine.	Cognizable.	Bailable.	Magistrate of the first class.
325	Mischief by killing or maiming animal.	Imprisonment for 5 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
326(a)	Mischief by causing diminution of supply of water for agricultural purposes, etc.	Imprisonment for 5 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
326(b)	Mischief by injury to public road, bridge, navigable river, or navigable channel, and rendering it impassable or less safe for travelling or conveying property.	Imprisonment for 5 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
326(c)	Mischief by causing inundation or obstruction to public drainage attended with damage.	Imprisonment for 5 years, or with fine, or with both.	Cognizable.	Bailable.	Magistrate of the first class.
326(d)	Mischief by destroying or moving or rendering less useful a lighthouse or seamark, or by exhibiting false lights.	Imprisonment for 7 years, or fine, or both.	Cognizable.	Bailable.	Magistrate of the first class.
326(e)	Mischief by destroying or moving, etc., a landmark fixed by public authority.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
326(f)	Mischief by fire or explosive substance with intent to cause damage.	Imprisonment for 7 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
326(g)	Mischief by fire or explosive substance with intent to destroy a house, etc.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
327(1)	Mischief with intent to destroy or make unsafe a decked vessel or a vessel of 20 tonnes burden.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
327(2)	The mischief described in the last section when committed by fire or any explosive substance.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.

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328	Running vessel with intent to commit theft, etc.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
329(3)	Criminal trespass.	Imprisonment for 3 months, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
329(4)	House-trespass.	Imprisonment for 1 year, or fine of 5,000 rupees, or both.	Cognizable.	Bailable.	Any Magistrate.
331(1)	Lurking house-trespass or house-breaking.	Imprisonment for 2 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
331(2)	Lurking house-trespass or house-breaking by night.	Imprisonment for 3 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
331(3)	Lurking house-trespass or house-breaking in order to the commission of an offence punishable with imprisonment.	Imprisonment for 3 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
	If the offence be theft.	Imprisonment for 10 years.	Cognizable.	Non-bailable.	Magistrate of the first class.
331(4)	Lurking house-trespass or house-breaking by night in order to the commission of an offence punishable with imprisonment.	Imprisonment for 5 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
	If the offence be theft.	Imprisonment for 14 years.	Cognizable.	Non-bailable.	Magistrate of the first class.
331(5)	Lurking house-trespass or house-breaking after preparation made for causing hurt, assault, etc.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
331(6)	Lurking house-trespass or house-breaking by night, after preparation made for causing hurt, etc.	Imprisonment for 14 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
331(7)	Grievous hurt caused whilst committing lurking house-trespass or house-breaking.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
331(8)	Death or grievous hurt caused by one of several persons jointly concerned in house-breaking by night, etc.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
332(a)	House-trespass in order to the commission of an offence punishable with death.	Imprisonment for life, or rigorous imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
332(b)	House-trespass in order to the commission of an offence punishable with imprisonment for life.	Imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Court of Session.
332(c)	House-trespass in order to the commission of an offence punishable with imprisonment.	Imprisonment for 2 years and fine.	Cognizable.	Bailable.	Any Magistrate.
	If the offence is theft.	Imprisonment for 7 years.	Cognizable.	Non-bailable.	Any Magistrate.

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333	House-trespass, having made preparation for causing hurt, assault, etc.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
334(1)	Dishonestly breaking open or unfastening any closed receptacle containing or supposed to contain property.	Imprisonment for 2 years, or fine, or both.	Cognizable.	Non-bailable.	Any Magistrate.
334(2)	Being entrusted with any closed receptacle containing or supposed to contain any property, and fraudulently opening the same.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Bailable.	Any Magistrate.
336(2)	Forgery.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
336(3)	Forgery for the purpose of cheating.	Imprisonment for 7 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
336(4)	Forgery for the purpose of harming the reputation of any person or knowing that it is likely to be used for that purpose.	Imprisonment for 3 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
337	Forgery of a record of a Court or of a Registrar of Births, etc., kept by a public servant.	Imprisonment for 7 years and fine	Non-cognizable.	Non-bailable.	Magistrate of the first class.
338	Forgery of a valuable security, will, or authority to make or transfer any valuable security, or to receive any money, etc.	Imprisonment for life, or imprisonment for 10 years and fine.	Non-cognizable.	Non-bailable.	Magistrate of the first class.
	When the valuable security is a promissory note of the Central Government.	Imprisonment for life, or imprisonment for 10 years and fine.	Cognizable.	Non-bailable.	Magistrate of the first class.
339	Having possession of a document, knowing it to be forged, with intent to use it as genuine; if the document is one of the description mentioned in section 337.	Imprisonment for 7 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
	If the document is one of the description mentioned in section 338.	Imprisonment for life, or imprisonment for 7 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
340(2)	Using as genuine a forged document which is known to be forged.	Punishment for forgery of such document.	Cognizable.	Bailable.	Magistrate of the first class.
341(1)	Making or counterfeiting a seal, plate, etc., with intent to commit a forgery punishable under section 338 or possessing with like intent any such seal, plate, etc., knowing the same to be counterfeit.	Imprisonment for life, or imprisonment for 7 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.

1	2	3	4	5	6
341(2)	Making or counterfeiting a seal, plate, etc., with intent to commit a forgery punishable otherwise than under section 338 or possessing with like intent any such seal, plate, etc., knowing the same to be counterfeit.	Imprisonment for 7 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
341(3)	Possesses any seal, plate or other instrument knowing the same to be counterfeit.	Imprisonment for 3 years and fine.	Cognizable.	Bailable.	Magistrate of the first class.
341(4)	Fraudulently or dishonestly uses as genuine any seal, plate or other instrument knowing or having reason to believe the same to be counterfeit.	Same as if he had made or counterfeited such seal, plate or other instrument.	Cognizable.	Bailable.	Magistrate of the first class.
342(1)	Counterfeiting a device or mark used for authenticating documents described in section 338 or possessing counterfeit marked material.	Imprisonment for life, or imprisonment for 7 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
342(2)	Counterfeiting a device or mark used for authenticating documents other than those described in section 338 or possessing counterfeit marked material.	Imprisonment for 7 years and fine.	Non-cognizable.	Non-bailable.	Magistrate of the first class.
343	Fraudulently destroying or defacing, or attempting to destroy or deface, or secreting, a will, etc.	Imprisonment for life, or imprisonment for 7 years and fine.	Non-cognizable.	Non-bailable.	Magistrate of the first class.
344	Falsification of accounts.	Imprisonment for 7 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
345(3)	Using a false property mark with intent to deceive or injure any person.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
346	Removing, destroying or defacing property mark with intent to cause injury.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
347(1)	Counterfeiting a property mark used by another, with intent to cause damage or injury.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
347(2)	Counterfeiting a property mark used by a public servant, or any mark used by him to denote the manufacture, quality, etc., of any property.	Imprisonment for 3 years and fine.	Non-cognizable.	Bailable.	Magistrate of the first class.
348	Fraudulently making or having possession of any die, plate or other instrument for counterfeiting any public or private property mark.	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.

1	2	3	4	5	6
349	Knowingly selling goods marked with a counterfeit property mark.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
350(1)	Fraudulently making a false mark upon any package or receptacle containing goods, with intent to cause it to be believed that it contains goods, which it does not contain, etc.	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
350(2)	Making use of any such false mark.	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
351(2)	Criminal intimidation.	Imprisonment for 2 years, or fine, or both.	Non-cognizable	Bailable	Any Magistrate.
351(3)	If threat be to cause death or grievous hurt, etc.	Imprisonment for 7 years, or fine, or both.	Non-cognizable	Bailable	Magistrate of the first class.
351(4)	Criminal intimidation by anonymous communication or having taken precaution to conceal whence the threat comes.	Imprisonment for 2 years, in addition to the punishment under section 351(1).	Non-cognizable.	Bailable.	Magistrate of the first class.
352	Insult intended to provoke breach of the peace.	Imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
353(1)	False statement, rumour, etc., circulated with intent to cause mutiny or offence against the public peace.	Imprisonment for 3 years, or fine, or both.	Non-cognizable.	Non-bailable.	Any Magistrate.
353(2)	False statement, rumour, etc., with intent to create enmity, hatred or ill-will between different classes.	Imprisonment for 3 years, or fine, or both.	Cognizable.	Non-bailable.	Any Magistrate.
353(3)	False statement, rumour, etc., made in place of worship, etc., with intent to create enmity, hatred or ill-will.	Imprisonment for 5 years and fine.	Cognizable.	Non-bailable.	Any Magistrate.
354	Act caused by inducing a person to believe that he will be rendered an object of Divine displeasure.	Imprisonment for 1 year, or fine, or both.	Non-cognizable.	Bailable.	Any Magistrate.
355	Appearing in a public place, etc., in a state of intoxication, and causing annoyance to any person.	Simple imprisonment for 24 hours, or fine of 1,000 rupees, or both or with community service.	Non-cognizable.	Bailable.	Any Magistrate.
356(2)	Defamation against the President or the Vice-President or the Governor of a State or Administrator of a Union territory or a Minister in respect of his conduct in the discharge of his public functions when instituted upon a complaint made by the Public Prosecutor.	Simple imprisonment for 2 years, or fine or both, or community service.	Non-cognizable.	Bailable.	Court of Session.
	Defamation in any other case.	Simple imprisonment for 2 years, or fine or both, or community service.	Non-cognizable.	Bailable.	Magistrate of the first class.

1	2	3	4	5	6
356(3)	Printing or engraving matter knowing it to be defamatory against the President or the Vice-President or the Governor of a State or Administrator of a Union territory or a Minister in respect of his conduct in the discharge of his public functions when instituted upon a complaint made by the Public Prosecutor.	Simple imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Court of Session.
	Printing or engraving matter knowing it to be defamatory, in any other case.	Simple imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
356(4)	Sale of printed or engraved substance containing defamatory matter, knowing it to contain such matter against the President or the Vice-President or the Governor of a State or Administrator of a Union territory or a Minister in respect of his conduct in the discharge of his public functions when instituted upon a complaint made by the Public Prosecutor.	Simple imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Court of Session.
	Sale of printed or engraved substance containing defamatory matter, knowing it to contain such matter in any other case.	Simple imprisonment for 2 years, or fine, or both.	Non-cognizable.	Bailable.	Magistrate of the first class.
357	Being bound to attend on or supply the wants of a person who is helpless from youth, unsoundness of mind or disease, and voluntarily omitting to do so.	Imprisonment for 3 months, or fine of 5,000 rupees, or both.	Non-cognizable.	Bailable.	Any Magistrate.

II.—CLASSIFICATION OF OFFENCES AGAINST OTHER LAWS

Offence	Cognizable or non-cognizable.	Bailable or non-bailable.	By what court triable.
1	2	3	4
If punishable with death, imprisonment for life, or imprisonment for more than 7 years.	Cognizable.	Non-bailable.	Court of Session.
If punishable with imprisonment for 3 years and upwards but not more than 7 years.	Cognizable.	Non-bailable.	Magistrate of the first class.
If punishable with imprisonment for less than 3 years or with fine only.	Non-cognizable.	Bailable.	Any Magistrate.

THE SECOND SCHEDULE

(See section 522)

FORM No.1

NOTICE FOR APPEARANCE BY THE POLICE

[See section 35(3)]

Serial No.....

Police Station.....

To,

.....

[Name of the Accused/Noticee]

.....

[Last known Address]

.....

[Phone No./Email ID (if any)]

In pursuance of sub-section (3) of section 35 of the Bharatiya Nagarik Suraksha Sanhita, 2023, I hereby inform you that during the investigation of FIR/ Case No dated u/s registered at Police Station, it is revealed that there are reasonable grounds to question you to ascertain facts and circumstances from you, in relation to the present investigation. Hence you are directed to appear before me at AM/ PM on at

Police Station.

Name and Designation of the Officer In charge
(Seal)

FORM No. 2

SUMMONS TO AN ACCUSED PERSON

(See section 63)

To.....(*name of accused*) of.....(*address*)

WHEREAS your attendance is necessary to answer to a charge of.....
.....(*state shortly the offence charged*), you are hereby required to
appear in person (*or by an advocate, before the (Magistrate) of*.....,
on the.....day..... Herein fail not.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 3

WARRANT OF ARREST

(See section 72)

To (name and designation of the person or persons who is or are to execute the warrant).

WHEREAS (name of accused) of (address) stands charged with the offence of (state the offence), you are hereby directed to arrest the said and to produce him before me. Herein fail not.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

(See section 73)

This warrant may be endorsed as follows:—

If the said..... shall give bail himself in the sum of rupees..... with one surety in the sum of rupees..... (or two sureties each in the sum of rupees.....) to attend before me on the..... day of..... and to continue so to attend until otherwise directed by me, he may be released.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 4

BOND AND BAIL-BOND AFTER ARREST UNDER A WARRANT

(See section 83)

I,(name), of....., being brought before the District Magistrate of.....(or as the case may be) under a warrant issued to compel my appearance to answer to the charge of....., do hereby bind myself to attend in the Court of.....on the.....day ofnext, to answer to the said charge, and to continue so to attend until otherwise directed by the Court; and, in case of my making default herein, I bind myself to forfeit, to Government, the sum of rupees.....

Dated, this..... day of....., 20

(Signature)

I do hereby declare myself surety for the above-named..... of..... that he shall attend before in the Court of on the..... day of..... next, to answer to the charge on which he has been arrested, and shall continue so to attend until otherwise directed by the Court; and, in case of his making default therein, I bind myself to forfeit, to Government, the sum of rupees.....

Dated, this..... day of....., 20

(Signature)

FORM No. 5

PROCLAMATION REQUIRING THE APPEARANCE OF A PERSON ACCUSED

(See section 84)

WHEREAS a complaint has been made before me that..... (*name, description and address*) has committed (*or is suspected to have committed*) the offence of....., punishable under section..... of the Bharatiya Nyaya Sanhita, 2023, and it has been returned to a warrant of arrest thereupon issued that the said..... (*name*) cannot be found, and whereas it has been shown to my satisfaction that the said..... (*name*) has absconded (*or is concealing himself to avoid the service of the said warranty*);

Proclamation is hereby made that the said..... of..... is required to appear at..... (*place*) before this Court (*or before me*) to answer the said complaint on the..... day of.....

Dated, this..... day of....., 20

(*Seal of the Court*)

(*Signature*)

FORM No. 6

PROCLAMATION REQUIRING THE ATTENDANCE OF A WITNESS

(See sections 84, 90 and 93)

WHEREAS complaint has been made before me that.....(*name, description and address*) has committed (or is suspected to have committed) the offence of(*mention the offence concisely*) and a warrant has been issued to compel the attendance of.....(*name, description and address of the witness*) before this Court to be examined touching the matter of the said complaint; and whereas it has been returned to the said warrant that the said.....(*name of witness*) cannot be served, and it has been shown to my satisfaction that he has absconded (or is concealing himself to avoid the service of the said warrant);

Proclamation is hereby made that the said.....(*name*) is required to appear at.....(*place*) before the Court.....on the.....day of.....next at.....o'clock to be examined touching.....the offence complained of.

Dated, this..... day of....., 20

(*Seal of the Court*)

(*Signature*)

FORM No. 7

ORDER OF ATTACHMENT TO COMPEL THE ATTENDANCE OF A WITNESS

(See section 85)

To the officer in charge of the police station at.....

WHEREAS a warrant has been duly issued to compel the attendance of.....(*name, description and address*) to testify concerning a complaint pending before this Court, and it has been returned to the said warrant that it cannot be served; and whereas it has been shown to my satisfaction that he has absconded (*or is concealing himself to avoid the service of the said warrant*); and thereupon a Proclamation has been or is being duly issued and published requiring the said.....to appear and give evidence at the time and place mentioned therein;

This is to authorise and require you to attach by seizure the movable property belonging to the said.....to the value of rupees.....which you may find within the District.....of.....and to hold the said property under attachment pending the further order of this Court, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 8

ORDER OF ATTACHMENT TO COMPEL THE APPEARANCE OF A PERSON ACCUSED

(See section 85)

To.....(*name and designation of the person or persons who is or are to execute the warrant*).

WHEREAS complaint has been made before me that.....(*name, description and address*) has committed (*or is suspected to have committed*) the offence of.....punishable under section.....of the Bharatiya Nyaya Sanhita, 2023 and it has been returned to a warrant of arrest thereupon issued that the said.....(*name*) cannot be found; and whereas it has been shown to my satisfaction that the said.....(*name*) has absconded (*or is concealing himself to avoid the service of the said warrant*) and thereupon a Proclamation has been or is being duly issued and published requiring the said.....to appear to answer the said charge within.....days; and whereas the said.....is possessed of the following property, other than land paying revenue to Government, in the village (*or town*), of....., in the District of....., viz.,....., and an order has been made for the attachment thereof;

You are hereby required to attach the said property in the manner specified in clause (*a*), or clause (*c*), or both*, of sub-section (3) of section 85, and to hold the same under attachment pending further order of this Court, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

*Strike out the one which is not applicable, depending on the nature of the property to be attached.

FORM No. 9

ORDER AUTHORISING AN ATTACHMENT BY THE DISTRICT MAGISTRATE
OR COLLECTOR

(See section 85)

To the District Magistrate/Collector of the District of.....

WHEREAS complaint has been made before me that.....
 (name, description and address) has committed (or is suspected to have committed) the
 offence of, punishable under section.....of
 the Bharatiya Nyaya Sanhita, 2023 and it has been returned to a warrant of arrest thereupon
 issued that the said.....(name) cannot be found; and whereas it has
 been shown to my satisfaction that the said.....(name) has absconded
 (or is concealing himself to avoid the service of the said warrant) and thereupon a Proclamation
 has been or is being duly issued and published requiring the said
 (name) to appear to answer the said charge within.....days; and whereas
 the said.....is possessed of certain land paying revenue to Government
 in the village (or town) of....., in the District of.....;

You are hereby authorised and requested to cause the said land to be attached, in the
 manner specified in clause (a), or clause (c), or both*, of sub-section (4) of section 85, and to
 be held under attachment pending the further order of this Court, and to certify without delay
 what you may have done in pursuance of this order.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

 *Strike out the one which is not desired.

FORM No. 10

WARRANT IN THE FIRST INSTANCE TO BRING UP A WITNESS

(See section 90)

To.....(*name and designation of the police officer or other person or persons who is or are to execute the warrant*).

WHEREAS complaint has been made before me that.....(*name and description of accused*) of.....(*address*) has (*or is suspected to have*) committed the offence of(*mention the offence concisely*), and it appears likely that.....(*name and description of witness*) can give evidence concerning the said complaint, and whereas I have good and sufficient reason to believe that he will not attend as a witness on the hearing of the said complaint unless compelled to do so;

This is to authorise and require you to arrest the said.....(*name of witness*), and on the.....day of.....to bring him before this Court....., to be examined touching the offence complained of.

Dated, this..... day of....., 20

(*Seal of the Court*)

(*Signature*)

FORM No. 11

WARRANT TO SEARCH AFTER INFORMATION OF A PARTICULAR OFFENCE

(See section 96)

To.....(*name and designation of the police officer or other person or persons who is or are to execute the warrant*).

WHEREAS information has been laid.....(*or complaint has been made*) before me of the commission.....(*or suspected commission*) of the offence of.....(*mention the offence concisely*), and it has been made to appear to me that the production of(*specify the thing clearly*) is essential to the inquiry now being made (*or about to be made*) into the said offence (*or suspected offence*);

This is to authorise and require you to search for the said.....(*the thing specified*) in the.....(*describe the house or place or part thereof to which the search is to be confined*), and, if found, to produce the same forthwith before this Court, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 12

WARRANT TO SEARCH SUSPECTED PLACE OF DEPOSIT

(See section 97)

To.....

(name and designation of the police officer above the rank of a constable).

WHEREAS information has been laid before me, and on due inquiry thereupon had, I have been led to believe that the.....*(describe the house or other place)* is used as a place for the deposit *(or sale)* of stolen property *(or if for either of the other purposes expressed in the section, state the purpose in the words of the section)*;

This is to authorise and require you to enter the said house *(or other place)* with such assistance as shall be required, and to use, if necessary, reasonable force for that purpose, and to search every part of the said house *(or other place, or if the search is to be confined to a part, specify the part clearly)*, and to seize and take possession of any property *(or documents, or stamps, or seals, or coins, or obscene objects, as the case may be)* *(add, when the case requires it)* and also of any instruments and materials which you may reasonably believe to be kept for the manufacture of forged documents, *or counterfeit stamps, or false seals, or counterfeit coins or counterfeit currency notes (as the case may be)*, and forthwith to bring before this Court such of the said things as may be taken possession of, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Dated, this..... day of....., 20

*(Seal of the Court)**(Signature)*

FORM No. 13

BOND TO KEEP THE PEACE

(See sections 125 and 126)

WHEREAS I,.....(*name*), inhabitant of
.....(*place*), have been called upon to enter into a bond to keep the
peace for the term of.....or until the completion of the inquiry in the
matter of.....now pending in the Court of....., I
hereby bind myself not to commit a breach of the peace, or do any act that may probably
occasion a breach of the peace, during the said term or until the completion of the said
inquiry and, in case of my making default therein, I hereby bind myself to forfeit, to Government,
the sum of rupees.....

Dated, this..... day of....., 20

(Signature)

FORM No. 14

BOND FOR GOOD BEHAVIOUR

(See sections 127, 128 and 129)

WHEREAS I,.....(*name*), inhabitant of.....(*place*), have been called upon to enter into a bond to be of good behaviour to Government and all the citizens of India for the term of(*state the period*) or until the completion of the inquiry in the matter of now pending in the Court of I hereby bind myself to be of good behaviour to Government and all the citizens of India during the said term or until the completion of the said inquiry; and, in case of my making default therein, I hereby bind myself to forfeit to Government the sum of rupees.....

Dated, this..... day of....., 20

(*Seal of the Court*)

(*Signature*)

(*Where a bond with sureties is to be executed, add*)

We do hereby declare ourselves sureties for the above-named.....that he will be of good behaviour to Government and all the citizens of India during the said term or until the completion of the said inquiry; and, in case of his making default therein, we bind ourselves, jointly and severally, to forfeit to Government the sum of rupees.....

Dated, this..... day of....., 20

(*Seal of the Court*)

(*Signature*)

FORM No. 15

SUMMONS ON INFORMATION OF A PROBABLE BREACH OF THE PEACE

(See section 132)

To.....of.....

WHEREAS it has been made to appear to me by credible information that.....
(state the substance of the information), and that you are likely to commit a breach of the
peace (or by which act a breach of the peace will probably be occasioned), you are hereby
required to attend in person (or by a duly authorised agent) at the office of the Magistrate
of.....on theday of
.....20....., at ten o'clock in the forenoon, to show cause why you
should not be required to enter into a bond for rupees.....[when sureties
are required, add, and also to give security by the bond of one (or two, as the case may be)
surety (or sureties) in the sum of rupees.....(each if more than one)],
that you will keep the peace for the term of.....

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 16

WARRANT OF COMMITMENT ON FAILURE TO FIND SECURITY TO KEEP THE PEACE

(See section 141)

To the Officer in charge of the Jail at.....

WHEREAS.....(*name and address*) appeared before me in person (*or by his authorised agent*) on the.....day of.....in obedience to a summons calling upon him to show cause why he should not enter into a bond for rupees.....with one surety (*or a bond with two sureties each in rupees.....*), that he, the said.....(*name*) would keep the peace for the period of months; and whereas an order was then made requiring the said.....(*name*) to enter into and find such security.....(*state the security ordered when it differs from that mentioned in the summons*), and he has failed to comply with the said order;

This is to authorise and require you to receive the said.....(*name*) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of.....(*term of imprisonment*) unless he shall in the meantime be lawfully ordered to be released, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 17

WARRANT OF COMMITMENT ON FAILURE TO FIND SECURITY FOR GOOD BEHAVIOUR

(See section 141)

To the Officer in charge of the Jail at.....

WHEREAS it has been made to appear to me that
(*name and description*) has been concealing his presence within the district of
and that there is reason to believe that he is doing so with a view
to committing a cognizable offence;

or

WHEREAS evidence of the general character of.....(*name and description*) has been adduced before me and recorded, from which it appears that he is an habitual robber (*or house-breaker, etc., as the case may be*);

AND WHEREAS an order has been recorded stating the same and requiring the said (*name*) to furnish security for his good behaviour for the term of (*state the period*) by entering into a bond with one surety (*or two or more sureties, as the case may be*), himself for rupees..... and the said surety (or each of the said sureties) rupeesand the said.....(*name*) has failed to comply with the said order and for such default has been adjudged imprisonment for (*state the term*) unless the said security be sooner furnished;

This is to authorise and require you receive the said.....(*name*) into your custody, together with this warrant and him safely to keep in the Jail, or if he is already in prison, be detained therein, for the said period of (*term of imprisonment*) unless he shall in the meantime be lawfully ordered to be released, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 18

WARRANT TO DISCHARGE A PERSON IMPRISONED ON FAILURE TO GIVE SECURITY

(See sections 141 and 142)

To the Officer in charge of the Jail at.....(or other officer in whose custody the person is).

WHEREAS.....(name and description of prisoner) was committed to your custody under warrant of the Court, dated the..... day of20.....; and has since duly given security under section of the Bharatiya Nagarik Suraksha Sanhita, 2023.

or

WHEREAS.....(name and description of prisoner) was committed to your custody under warrant of the Court, dated the..... day of20.....; and there have appeared to me sufficient grounds for the opinion that he can be released without hazard to the community;

This is to authorise and require you forthwith to discharge the said (name) from your custody unless he is liable to be detained for some other cause.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 19

WARRANT OF IMPRISONMENT ON FAILURE TO PAY MAINTENANCE

(See section 144)

To the Officer in charge of the Jail at.....

WHEREAS.....(*name, description and address*) has been proved before me to be possessed of sufficient means to maintain his wife(*name*) [*or his child*.....(*name*) *or his father or mother*.....(*name*), who is by reason of (*state the reason*) unable to maintain herself (*or himself*)] and to have neglected (*or refused*) to do so, and an order has been duly made requiring the said.....(*name*) to allow to his saidwife (*or child or father or mother*) for maintenance the monthly sum of rupees.....; and whereas it has been further proved that the said.....(*name*) in wilful disregard of the said order has failed to pay rupees....., being the amount of the allowance for the month (*or months*) of.....;

And thereupon an order was made adjudging him to undergo imprisonment in the said Jail for the period of.....;

This is to authorise and require you receive the said.....(*name*) into your custody in the said Jail, together with this warrant, and there carry the said order into execution according to law, returning this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 20

WARRANT TO ENFORCE THE PAYMENT OF MAINTENANCE BY ATTACHMENT AND SALE

(See section 144)

To.....
(name and designation of the police officer or other person to execute the warrant).

WHEREAS an order has been duly made requiring.....(name) to allow to his said wife (or child or father or mother) for maintenance the monthly sum of rupees....., and whereas the said.....(name) in wilful disregard of the said order has failed to pay rupees....., being the amount of the allowance for the month (or months) of.....

This is to authorise and require you to attach any movable property belonging to the said.....(name) which may be found within the district of....., and if within.....(state the number of days or hours allowed) next after such attachment the said sum shall not be paid (or forthwith), to sell the movable property attached, or so much thereof as shall be sufficient to satisfy the said sum, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 21

ORDER FOR THE REMOVAL OF NUISANCES

(See section 152)

To.....(*name, description and address*).

WHEREAS it has been made to appear to me that you have caused an obstruction (*or nuisance*) to persons using the public roadway (*or other public place*) which, etc., (*describe the road or public place*) by, etc.,(*state what it is that causes the obstruction or nuisance*), and that such obstruction (*or nuisance*) still exists;

or

WHEREAS it has been made to appear to me that you are carrying on, as owner, or manager, the trade or occupation of(*state the particular trade or occupation and the place where it is carried on*), and that the same is injurious to the public health (*or comfort*) by reason.....(*state briefly in what manner the injurious effects are caused*), and should be suppressed or removed to different place;

or

WHEREAS it has been made to appear to me that you are the owner (*or are in possession of or have the control over*) a certain tank (*or well or excavation*) adjacent to the public way(*describe the thoroughfare*), and that the safety of the public is endangered by reason of the said tank (*or well or excavation*) being without a fence (*or insecurely fenced*);

or

WHEREAS , etc., etc., (*as the case may be*);

I do hereby direct and require you within.....(*state the time allowed*) (*state what is required to be done to abate the nuisance*) or to appear at.....in the Court of.....on theday of.....next, and to show cause why this order should not be enforced;

or

I do hereby direct and require you within.....(*state the time allowed*) to cease carrying on the said trade or occupation at the said place, and not again to carry on the same, or to remove the said trade from the place where it is now carried on, or to appear, etc.;

or

I do hereby direct and require you within.....(*state the time allowed*) to put up a sufficient fence (*state the kind of fence and the part to be fenced*); or to appear, etc.;

or

I do hereby direct and require you, etc., etc. (*as the case may be*).

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 22

MAGISTRATE'S NOTICE AND PEREMPTORY ORDER

(See section 160)

To.....(*name, description and address*).

I HEREBY give you notice that it has been found that the order issued on theday of.....requiring you(*state substantially the requisition in the order*) is reasonable and proper. Such order has been made absolute, and I hereby direct and require you to obey the said order within (*state the time allowed*), on peril of the penalty provided by the Bharatiya Nyaya Sanhita, 2023 for disobedience thereto.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 23

INJUNCTION TO PROVIDE AGAINST IMMINENT DANGER PENDING INQUIRY

(See section 161)

To.....(*name, description and address*).

WHEREAS the inquiry into the conditional order issued by me on the.....day of....., 20....., is pending, and it has been made to appear to me that the nuisance mentioned in the said order is attended with such imminent danger or injury of a serious kind to the public as to render necessary immediate measures to prevent such danger or injury, I do hereby, under the provisions of section 161 of the Bharatiya Nagarik Suraksha Sanhita, 2023, direct and enjoin you forthwith to (*state plainly what is required to be done as a temporary safeguard*), pending the result of the inquiry.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 24

MAGISTRATE'S ORDER PROHIBITING THE REPETITION, ETC., OF A NUISANCE

(See section 162)

To.....(*name, description and address*).WHEREAS it has been made to appear to me that, etc.(*state the proper recital, guided by Form No. 21 or Form No. 25, as the case may be*);

I do hereby strictly order and enjoin you not to repeat or continue, the said nuisance.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 25

MAGISTRATE'S ORDER TO PREVENT OBSTRUCTION, RIOT, ETC.

(See section 163)

To.....(*name, description and address*).

WHEREAS it has been made to appear to me that you are in possession (*or have the management*) of(*describe clearly the property*), and that, in digging a drain on the said land, you are about to throw or place a portion of the earth and stones dug-up upon the adjoining public road, so as to occasion risk of obstruction to persons using the road;

or

WHEREAS it has been made to appear to me that you and a number of other persons (*mention the class of persons*) are about to meet and proceed in a procession along the public street, etc., (*as the case may be*) and that such procession is likely to lead to a riot or an affray;

or

WHEREAS, etc., etc., (*as the case may be*);

I do hereby order you not to place or permit to be placed any of the earth or stones dug from land on any part of the said road;

or

I do hereby prohibit the procession passing along the said street, and strictly warn and enjoin you not to take any part in such procession (*or as the case recited may require*).

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 26

MAGISTRATE'S ORDER DECLARING PARTY ENTITLED TO RETAIN POSSESSION OF LAND, ETC., IN
DISPUTE

(See section 164)

It appears to me, on the grounds duly recorded, that a dispute, likely to induce a breach of the peace, existed between.....(*describe the parties by name and residence or residence only if the dispute be between bodies of villagers*) concerning certain.....(*state concisely the subject of dispute*), situate within my local jurisdiction, all the said parties were called upon to give in a written statement of their respective claims as to the fact of actual possession of the said.....(*the subject of dispute*), and being satisfied by due inquiry had thereupon, without reference to the merits of the claim of either of the said parties to the legal right of possession, that the claim of actual possession by the said.....(*name or names or description*) is true; I do decide and declare that he is (*or they are*) in possession of the said.....(*the subject of dispute*) and entitled to retain such possession until ousted by due course of law, and do strictly forbid any disturbance of his (*or their*) possession in the meantime.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 27

WARRANT OF ATTACHMENT IN THE CASE OF A DISPUTE AS TO THE POSSESSION OF
LAND, ETC.

(See section 165)

To the officer in charge of the police station at.....

(or, To the Collector of.....).

WHEREAS it has been made to appear to me that a dispute likely to induce a breach of the peace, existed between.....(*describe the parties concerned by name and residence, or residence only if the dispute be between bodies of villagers*) concerning certain.....(*state concisely the subject of dispute*) situate within the limits of my jurisdiction, and the said parties were thereupon duly called upon to state in writing their respective claims as to the fact of actual possession of the said(*the subject of dispute*), and whereas, upon due inquiry into the said claims, I have decided that neither of the said parties was in possession of the said.....(*the subject of dispute*) (or I am unable to satisfy myself as to which of the said parties was in possession as aforesaid);

This is to authorise and require you to attach the said.....(*the subject of dispute*) by taking and keeping possession thereof, and to hold the same under attachment until the decree or order of a competent Court determining the rights of the parties, or the claim to possession, shall have been obtained, and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 28

MAGISTRATE'S ORDER PROHIBITING THE DOING OF ANYTHING ON LAND OR WATER

(See section 166)

A dispute having arisen concerning the right of use of.....(*state concisely the subject of dispute*) situate within my local jurisdiction, the possession of which land (or water) is claimed exclusively by.....(*describe the person or persons*), and it appears to me, on due inquiry into the same, that the said land (or water) has been open to the enjoyment of such use by the public (*or if by an individual or a class of persons, describe him or them*) and (*if the use can be enjoyed throughout the year*) that the said use has been enjoyed within three months of the institution of the said inquiry (*or if the use is enjoyable only at a particular season, say, "during the last of the seasons at which the same is capable of being enjoyed"*);

I do order that the said.....(*the claimant or claimants of possession*) or any one in their interest, shall not take (*or retain*) possession of the said land (*or water*) to the exclusion of the enjoyment of the right of use aforesaid, until he (*or they*) shall obtain the decree or order of a competent Court adjudging him (*or them*) to be entitled to exclusive possession.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 29

BOND AND BAIL-BOND ON A PRELIMINARY INQUIRY BEFORE A POLICE OFFICER

(See section 189)

I,.....(name), of....., being charged with the offence of....., and after inquiry required to appear before the Magistrate of.....

or

and after inquiry called upon to enter into my own recognizance to appear when required, do hereby bind myself to appear at....., in the Court of....., on the.....day of.....next (or on such day as I may hereafter be required to attend) to answer further to the said charge, and in case of my making default herein. I bind myself to forfeit to Government, the sum of rupees.....;

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

I hereby declare myself (or we jointly and severally declare ourselves and each of us) surety (or sureties) for the above said (name) that he shall attend at.....in the Court of....., on the.....day of.....next (or on such day as he may hereafter be required to attend), further to answer to the charge pending against him, and, in case of his making default therein, I hereby bind myself (or we hereby bind ourselves) to forfeit to Government the sum of rupees.....

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 30

BOND TO PROSECUTE OR GIVE EVIDENCE

(See section 190)

I,.....(name) of(place), do hereby bind myself to attend at.....in the Court of.....at.....o'clock on the.....day of.....next and then and there to prosecute (or to prosecute and give evidence) (or to give evidence) in the matter of a charge of.....against one A. B., and, in case of making default herein, I bind myself to forfeit to Government the sum of rupees.....

Dated, this..... day of....., 20

(Signature)

FORM No. 31

SPECIAL SUMMONS TO A PERSON ACCUSED OF A PETTY OFFENCE

(See section 229)

To,

(Name of the accused)

of.....(address)

WHEREAS your attendance is necessary to answer a charge of a petty offence(state shortly the offence charged), you are hereby required to appear in person (or by an advocate) before.....(Magistrate) of.....on the.....day of..... 20....., or if you desire to plead guilty to the charge without appearing before the Magistrate, to transmit before the aforesaid date the plea of guilty in writing and the sum of rupees as fine, or if you desire to appear by an advocate and to plead guilty through such an advocate, to authorise such advocate in writing to make such a plea of guilty on your behalf and to pay the fine through such advocate. Herein fail not.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

(Note.—The amount of fine specified in this summons shall not exceed five thousand rupees.)

FORM No. 32

NOTICE OF COMMITMENT BY MAGISTRATE TO PUBLIC PROSECUTOR

(See section 232)

The Magistrate of.....hereby gives notice that he has committed one.....for trial at the next Sessions; and the Magistrate hereby instructs the Public Prosecutor to conduct the prosecution of the said case.

The charge against the accused is that,..... etc. (state the offence as in the charge)

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 33

CHARGES

(See sections 234, 235 and 236)

I. CHARGES WITH ONE-HEAD

(1)(a) I, (name and office of Magistrate, etc.), hereby charge you (name of accused person) as follows:—

(b) On section 147.—That you, on or about the day of, at, waged war against the Government of India and thereby committed an offence punishable under section 147 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of this Court.

(c) And I hereby direct that you be tried by this Court on the said charge.

(Signature and seal of the Magistrate)

[To be substituted for (b)]:—

(2) On section 151.—That you, on or about the day of, at, with the intention of inducing the President of India [or, as the case may be, the Governor of (name of State)] to refrain from exercising a lawful power as such President (or, as the case may be, the Government) assaulted President (or, as the case may be, the Governor), and thereby committed an offence punishable under section 151 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(3) On section 198.—That you, on or about the day of, at, did (or omitted to do, as the case may be), such conduct being contrary to the provisions of Act, section, and known by you to be prejudicial to, and thereby committed an offence punishable under section 198 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(4) On section 229.—That you, on or about the day of, at, in the course of the trial of before, stated in evidence that “.....” which statement you either knew or believed to be false, or did not believe to be true, and thereby committed an offence punishable under section 229 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(5) On section 105.—That you, on or about the day of, at, committed culpable homicide not amounting to murder, causing the death of, and thereby committed an offence punishable under section 105 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(6) On section 108.—That you, on or about the day of, at, abetted the commission of suicide by A.B., a person in a state of intoxication, and thereby committed an offence punishable under section 108 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(7) On section 117(2).—That you, on or about the day of, at, voluntarily caused grievous hurt to, and thereby committed an offence punishable under section 117(2) of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(8) On section 309(2).—That you, on or about the.....day of....., at....., robbed..... (state the name), and thereby committed an offence punishable under section 309(2) of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(9) On section 310(2).—That you, on or about the.....day of....., at....., committed dacoity, an offence punishable under section 310(2) of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of this Court.

II. CHARGES WITH TWO OR MORE HEADS

(1)(a) I,.....(name and office of Magistrate, etc.), hereby charge you.....(name of accused person) as follows:—

(b) On section 179.—*First*—That you, on or about the.....day of....., at....., knowing a coin to be counterfeit, delivered the same to another person, by name, A. B., as genuine, and thereby committed an offence punishable under section 179 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Secondly—That you, on or about the.....day of....., at....., knowing a coin to be counterfeit attempted to induce another person, by name, A.B., to receive it as genuine, and thereby committed an offence punishable under section 179 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

(c) And I hereby direct that you be tried by the said Court on the said charge.

(Signature and seal of the Magistrate)

[To be substituted for (b)]:—

(2) On sections 103 and 105.—*First*—That you, on or about the.....day of....., at....., committed murder by causing the death of....., and thereby committed an offence punishable under section 103 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Secondly—That you, on or about the.....day of....., at....., by causing the death of....., committed culpable homicide not amounting to murder, and thereby committed an offence punishable under section 105 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

(3) On sections 303(2) and 307.—*First*—That you, on or about the.....day of....., at....., committed theft, and thereby committed an offence punishable under section 303(2) of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Secondly—That you, on or about the.....day of....., at....., committed theft, having made preparation for causing death to a person in order to the committing of such theft, and thereby committed an offence punishable under section 307 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Thirdly—That you, on or about the.....day of....., at....., committed theft, having made preparation for causing restraint to a person in order to the effecting of your escape after the

committing of such theft, and thereby committed an offence punishable under section 307 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Fourthly—That you, on or about the.....day of....., at....., committed theft, having made preparation for causing fear of hurt to a person in order to the restraining of property taken by such theft and thereby committed an offence punishable under section 307 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

(4) Alternative charge on section 229.—That you, on or about the.....day of....., at....., in the course of the inquiry into....., before....., stated in evidence that “.....”, and that you, on or about the.....day of....., at....., in the course of the trial of,..... before, stated in the evidence that “.....”, one of which statements you either knew or believed to be false, did not believe to be true, and thereby committed an offence punishable under section 229 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

(In cases tried by Magistrates substitute “within my cognizance” for “within the cognizance of the Court of Session”.)

III. CHARGES FOR THEFT AFTER PREVIOUS CONVICTION

I,.....(name and office of Magistrate, etc.) hereby charge you.....(name of accused person) as follows:—

That you, on or about the.....day of....., at....., committed theft, and thereby committed an offence punishable under section 303(2) of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session (or Magistrate, as the case may be).

And you, the said(name of accused), stand further charged that you, before the committing of the said offence, that is to say, on the..... day of....., had been convicted by the.....(state Court by which conviction was had) at.....of an offence punishable under Chapter XVII of the Bharatiya Nyaya Sanhita, 2023 with imprisonment for a term of three years, that is to say, the offence of house-breaking by night.....(describe the offence in the words used in the section under which the accused was convicted), which conviction is still in full force and effect, and that you are thereby liable to enhanced punishment under section 13 of the Bharatiya Nyaya Sanhita, 2023.

And I hereby direct that you be tried, etc.

FORM No. 34

SUMMONS TO WITNESS

(See sections 63 and 267)

To.....of.....

WHEREAS complaint has been made before me that.....(*name of the accused*) of(*address*) has (*or is suspected to have*) committed the offence of.....(*state the offence concisely with time and place*), and it appears to me that you are likely to give material evidence or to produce any document or other thing for the prosecution.

You are hereby summoned to appear before this Court on the..... day of.....next at ten o'clock in the forenoon, to produce such document or thing or to testify what you know concerning the matter of the said complaint, and not to depart thence without leave of the Court; and you are hereby warned that, if you shall without just excuse neglect or refuse to appear on the said date, a warrant will be issued to compel your attendance.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 35

WARRANT OF COMMITMENT ON A SENTENCE OF IMPRISONMENT OR
FINE IF PASSED BY A COURT

(See sections 258, 271 and 278)

To the Officer in charge of Jail at.....

WHEREAS on the.....day of,
.....(*name of the prisoner*), the (1st, 2nd, 3rd, *as the case may be*)
prisoner in case No.of the Calendar for 20,
was convicted before me.....(*name and official designation*) of the
offence of.....(*mention the offence or offences concisely*) under section
(or sections) of the Bharatiya Nyaya Sanhita, 2023 (or
of.....Act), and was sentenced to.....(*state
the punishment fully and distinctly*).

This is to authorise and require you to receive the said.....
(*prisoner's name*) into your custody in the said Jail, together with this warrant, and thereby
carry the aforesaid sentence into execution according to law.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 36

WARRANT OF IMPRISONMENT ON FAILURE TO PAY COMPENSATION

(See section 273)

To the Officer in charge of Jail at.....

WHEREAS.....(*name and description*) has brought against.....(*name and description of the accused person*) the complaint that.....(*mention it concisely*) and the same has been dismissed on the ground that there was no reasonable ground for making the accusation against the said.....(*name*) and the order of dismissal awards payment by the said.....(*name of complainant*) of the sum of rupees.....as compensation; and whereas the said sum has not been paid and an order has been made for his simple imprisonment in Jail for the period of.....days, unless the aforesaid sum be sooner paid;

This is to authorise and require you to receive the said.....(*name*) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of(*term of imprisonment*), subject to the provisions of section 8(6)(b) of the Bharatiya Nyaya Sanhita, 2023, unless the said sum be sooner paid, and on the receipt thereof, forthwith to set him at liberty, returning this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 37

ORDER REQUIRING PRODUCTION IN COURT OF PERSON IN PRISON FOR ANSWERING TO
CHARGE OF OFFENCE

(See section 302)

To the Officer in charge of Jail at.....

WHEREAS the attendance of.....(*name of prisoner*) at present confined/detained in the above-mentioned prison, is required in this Court to answer to a charge of.....(*state shortly the offence charged*) or for the purpose of a proceeding.....(*state shortly the particulars of the proceeding*).

You are hereby required to produce the said.....under safe and sure conduct before this Court at.....on the.....day of....., 20....., by.....A. M. there to answer to the said charge, or for the purpose of the said proceeding, and after this Court has dispensed with his further attendance, cause him to be conveyed under safe and sure conduct back to the said prison.

And you are further required to inform the said.....of the contents of this order and deliver to him the attached copy thereof.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)
Countersigned.

(Seal)

(Signature)

FORM No. 38

ORDER REQUIRING PRODUCTION IN COURT OF PERSON IN PRISON FOR GIVING EVIDENCE

(See section 302)

To the Officer in charge of the Jail at.....

WHEREAS complaint has been made before this Court that.....
(name of the accused) of has committed the offence of.....(state offence
concisely with time and place) and it appears that.....(name of prisoner)
at present confined/detained in the above-mentioned prison, is likely to give material evidence
for the prosecution/defence.

You are hereby required to produce the said.....under safe and
sure conduct before this Court at.....on the.....day
of....., 20....., by A. M. there to give evidence in the matter now
pending before this Court, and after this Court has dispensed with his further attendance,
cause him to be conveyed under safe and sure conduct back to the said prison.

And you are further required to inform the said.....of the contents
of this order and deliver to him the attached copy thereof.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)
Countersigned.

(Seal)

(Signature)

FORM No. 39

WARRANT OF COMMITMENT IN CERTAIN CASES OF CONTEMPT WHEN A FINE IS IMPOSED

(See section 384)

To the Officer in charge of the Jail at.....

WHEREAS at a Court held before me on this day.....(*name and description of the offender*) in the presence (*or view*) of the Court committed wilful contempt.

And whereas for such contempt the said.....(*name of the offender*) has been adjudged by the Court to pay a fine of rupees....., or in default to suffer simple imprisonment for the period of.....(*state the number of months or days*).

This is to authorise and require you to receive the said.....(*name of the offender*) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of.....(*term of imprisonment*), unless the said fine be sooner paid; and, on the receipt thereof, forthwith to set him at liberty, returning this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 40

MAGISTRATE'S OR JUDGE'S WARRANT OF COMMITMENT OF WITNESS REFUSING TO ANSWER OR
TO PRODUCE DOCUMENT

(See section 388)

To.....

(name and designation of officer of Court)

WHEREAS.....(name and description), being summoned (or brought before this Court) as a witness and this day required to give evidence on an inquiry into an alleged offence, refused to answer a certain question (or certain questions) put to him touching the said alleged offence, and duly recorded, or having been called upon to produce any document has refused to produce such document, without alleging any just excuse for such refusal, and for his refusal has been ordered to be detained in custody for.....(term of detention adjudged);

This is to authorise and require you to take the said.....(name) into custody, and him safely to keep in your custody for the period of.....days, unless in the meantime he shall consent to be examined and to answer the questions asked of him, or to produce the document called for from him, and on the last of the said days, or forthwith on such consent being known, to bring him before this Court to be dealt with according to law, returning this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 41

WARRANT OF COMMITMENT UNDER SENTENCE OF DEATH

(See section 407)

To the Officer in charge of the Jail at.....

WHEREAS at the session held before me on the.....day of....., 20....., (name of prisoner), the (1st, 2nd, 3rd, as the case may be), prisoner in case No. of the Calendar for 20..... at the said Session, was duly convicted of the offence of culpable homicide amounting to murder under sectionof the Bharatiya Nyaya Sanhita, 2023, and sentenced to death, subject to the confirmation of the said sentence by the.....Court of.....

This is to authorise and require you to receive the said..... (prisoner's name) into your custody in the said Jail, together with this warrant, and him there safely to keep until you shall receive the further warrant or order of this Court, carrying into effect the order of the saidCourt.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 42

WARRANT AFTER A COMMUTATION OF A SENTENCE

(See sections 427, 453 and 456)

To the Officer in charge of the Jail at.....

WHEREAS at a Session held on the.....day of....., 20.....,(*name of the prisoner*), the (1st, 2nd, 3rd, *as the case may be*), prisoner in case No. of the Calendar for 20....., at the said Session, was convicted of the offence of....., punishable under section.....of the Bharatiya Nyaya Sanhita, 2023, and was sentenced to..... and thereupon committed to your custody; and whereas by the order of the Court of order of the(a duplicate of which is hereunto annexed) the punishment adjudged by the said sentence has been commuted to the punishment of imprisonment for life;

This is to authorise and require you safely to keep the said.....(*prisoner's name*) in your custody in the said Jail, as by law is required, until he shall be delivered over by you to the proper authority and custody for the purpose of his undergoing the punishment of imprisonment for life under the said order,

or

if the mitigated sentence is one of imprisonment, say, after the words "custody in the said Jail", "and there to carry into execution the punishment of imprisonment under the said order according to law".

Dated, this..... day of....., 20.....

(Seal of the Court)

(Signature)

FORM No. 43

WARRANT OF EXECUTION OF A SENTENCE OF DEATH

(See sections 453 and 454)

To the Officer in charge of the Jail at.....

WHEREAS.....(*name of the prisoner*), the (1st, 2nd, 3rd, *as the case may be*) prisoner in case No. of the Calendar for 20..... at the Session held before me on the.....day of, 20, has been by a warrant of the Court, dated the..... day of, committed to your custody under sentence of death; and whereas the order of the High Court atconfirming the said sentence has been received by this Court.

This is to authorise and require you to carry the said sentence into execution by causing the said.....to be hanged by the neck until he be dead, at.....(*time and place of execution*), and to return this warrant to the Court with an endorsement certifying that the sentence has been executed.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 44

WARRANT TO LEVY A FINE BY ATTACHMENT AND SALE

(See section 461)

To.....

(name and designation of the police officer or other person or persons who is or are to execute the warrant).

WHEREAS.....(name and description of the offender) was on the.....day of....., 20....., convicted before me of the offence of.....(mention the offence concisely), and sentenced to pay a fine of rupees.....; and whereas the said.....(name), although required to pay the said fine, has not paid the same or any part thereof;

This is to authorise and require you to attach any movable property belonging to the said(name), which may be found within the district of.....; and, if within.....(state the number of days or hours allowed) next after such attachment the said sum shall not be paid (or forthwith), to sell the movable property attached, or so much thereof as shall be sufficient to satisfy the said fine, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 45

WARRANT FOR RECOVERY OF FINE

(See section 461)

To the Collector of the district of.....

WHEREAS..... (*name, address and description of the offender*)
was on the.....day of....., 20....., convicted
before me of the offence of.....(*mention the offence concisely*), and
sentenced to pay a fine of rupees.....; and

WHEREAS the said.....(*name*), although require to pay the said
fine, has not paid the same or any part of thereof;

You are hereby authorised and requested to realise the amount of the said fine as
arrears of land revenue from the movable or immovable property, or both, of the
said.....(*name*) and to certify without delay what you have done in
pursuance of this order.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 46

BOND FOR APPEARANCE OF OFFENDER RELEASED PENDING REALISATION OF FINE

[See section 464 (1) (b)]

WHEREAS I,.....(name) inhabitant of.....
(place), have been sentenced to pay a fine of rupees.....and in default
of payment thereof to undergo imprisonment for.....; and whereas the
Court has been pleased to order my release on condition of my executing a bond for my
appearance on the following date (or dates), namely:—

I hereby bind myself to appear before the Court of.....
at..... o'clock on the following date (or dates), namely:—

and, in case of making default herein, I bind myself to forfeit to Government the sum of
rupees.....

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

WHERE A BOND WITH SURETIES IS TO BE EXECUTED, ADD—

We do hereby declare ourselves sureties for the above-named that he will appear
before the Court ofon the following date (or dates), namely:—

And, in case of his making default therein, we bind ourselves jointly and severally to
forfeit to Government the sum of rupees.....

(Signature)

FORM No. 47

BOND AND BAIL-BOND FOR ATTENDANCE BEFORE OFFICER IN CHARGE OF POLICE STATION OR
COURT

[See sections 478, 479, 480, 481, 482(3) and 485]

I,.....(name), of.....(place), having been
arrested or detained without warrant by the Officer in charge of.....police
station (or having been brought before the Court of.....), charged
with the offence of....., and required to give security for my attendance
before such Officer of Court on condition that I shall attend such Officer or Court on every
day on which any investigation or trial is held with regard to such charge, and in case of my
making default herein, I bind myself to forfeit to Government the sum of rupees.....

Dated, this..... day of....., 20

(Signature)

I hereby declare myself (or we jointly and severally declare ourselves and each of us)
surety (or sureties) for the above said.....(name) that he shall attend
the Officer in charge of.....police station or the Court
of.....on every day on which any investigation into the charge is
made or any trial on such charge is held, that he shall be, and appear, before such Officer or
Court for the purpose of such investigation or to answer the charge against him (as the case
may be), and, in case of his making default herein, I hereby bind myself (or we, hereby bind
ourselves) to forfeit to Government the sum of rupees.....

Dated, this..... day of....., 20

(Signature)

FORM No. 48

WARRANT TO DISCHARGE A PERSON IMPRISONED ON FAILURE TO GIVE SECURITY

(See section 487)

To the Officer in charge of the Jail at.....

(or other officer in whose custody the person is)

WHEREAS.....(name and description of prisoner) was committed to your custody under warrant of this Court, dated the.....day of....., and has since with his surety (or sureties) duly executed a bond under section 485 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

This is to authorise and require you forthwith to discharge the said.....(name) from your custody, unless he is liable to be detained for some other matter.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 49

WARRANT OF ATTACHMENT TO ENFORCE A BOND

(See section 491)

To the Police Officer in charge of the police station at.....

WHEREAS.....(*name, description and address of person*) has failed to appear on.....(*mention the occasion*) pursuant to his recognizance, and has by default forfeited to Government the sum of rupees.....(*the penalty in the bond*); and whereas the said.....(*name of person*) has, on due notice to him, failed to pay the said sum or show any sufficient cause why payment should not be enforced against him;

This is to authorise and require you to attach any movable property of the said(*name*) that you may find within the district of , by seizure and detention, and, if the said amount be not paid within..... , days to sell the property so attached or so much of it as may be sufficient to realise the amount aforesaid, and to make return of what you have done under this warrant immediately upon its execution.

Dated, this..... day of..... , 20

(Seal of the Court)

(Signature)

FORM No. 50

NOTICE TO SURETY ON BREACH OF A BOND

(See section 491)

To of

WHEREAS on the.....day of..... ,
20, you became surety for.....(*name*)
of.....(*place*) that he should appear before this Court on
the.....day ofand bound yourself in default
thereof to forfeit the sum of rupees.....to Government; and whereas the
said.....(*name*) has failed to appear before this Court and by reason of
such default you have forfeited the aforesaid sum of rupees.

You are hereby required to pay the said penalty or show cause,
within.....days from this date, why payment of the said sum should
not be enforced against you.

Dated, this..... day of..... , 20

(Seal of the Court)

(Signature)

FORM No. 51

NOTICE TO SURETY OF FORFEITURE OF BOND FOR GOOD BEHAVIOUR

(See section 491)

To..... of.....

WHEREAS on the.....day of....., 20....., you became surety by a bond for.....(name) of.....(place) that he would be of good behaviour for the period of.....and bound yourself in default thereof to forfeit the sum of rupees..... to Government; and whereas the said.....(name) has been convicted of the offence of..... (mention the offence concisely) committed since you became such surety, whereby your security bond has become forfeited;

You are hereby required to pay the said penalty of rupees or to show cause within days why it should not be paid.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 52

WARRANT OF ATTACHMENT AGAINST A SURETY

(See section 491)

To.....of.....

WHEREAS.....(*name, description and address*) has bound himself as surety for the appearance of (*mention the condition of the bond*) and the said (*name*) has made default, and thereby forfeited to Government the sum of rupees (*the penalty in the bond*);

This is to authorise and require you to attach any movable property of the said(*name*) which you may find within the district of , by seizure and detention; and, if the said amount be not paid within days, to sell the property so attached, or so much of it as may be sufficient to realise the amount aforesaid, and make return of what you have done under this warrant immediately upon its execution.

Dated, this..... day of..... , 20

(Seal of the Court)

(Signature)

FORM No. 53

WARRANT OF COMMITMENT OF THE SURETY OF AN ACCUSED PERSON ADMITTED TO BAIL

(See section 491)

To the Superintendent (or Keeper) of the Civil Jail at.....

WHEREAS.....(*name and description of surety*) has bound himself as a surety for the appearance of..... (*state the condition of the bond*) and the said.....(*name*) has therein made default whereby the penalty mentioned in the said bond has been forfeited to Government; and whereas the said.....(*name of surety*) has, on due notice to him, failed to pay the said sum or show any sufficient cause why payment should not be enforced against him, and the same cannot be recovered by attachment and sale of his movable property, and an order has been made for his imprisonment in the Civil Jail for.....(*Specify the period*);

This is to authorise and require you, the said Superintendent (or Keeper) to receive the said.....(*name*) into your custody with the warrant and to keep him safely in the said Jail for the said.....(*term of imprisonment*), and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 54

NOTICE TO THE PRINCIPAL OF FORFEITURE OF BOND TO KEEP THE PEACE

(See section 491)

To.....(*name, description and address*)

WHEREAS on the.....day of....., 20.....,
you entered into a bond not to commit, etc.,(*as in the bond*), and
proof of the forfeiture of the same has been given before me and duly recorded;

You are hereby called upon to pay the said penalty of rupees..... or to show
cause before me within.....days why payment of the same should not
be enforced against you.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 55

WARRANT TO ATTACH THE PROPERTY OF THE PRINCIPAL ON BREACH OF A BOND TO KEEP
THE PEACE

(See section 491)

To.....
(*name and designation of police officer*), at the police station of.....

WHEREAS.....(*name and description*) did, on
the.....day of....., 20....., enter into a
bond for the sum of rupees.....binding himself not to commit a breach
of the peace, etc., (*as in the bond*), and proof of the forfeiture of the said bond has been given
before me and duly recorded; and whereas notice has been given to the said
.....(*name*) calling upon him to show cause why the said sum should
not be paid, and he has failed to do so or to pay the said sum;

This is to authorise and require you to attach by seizure movable property belonging
to the said.....(*name*) to the value of rupees....., which you may
find within the district of....., and, if the said sum be not paid
within....., to sell the property so attached, or so much of it as may be
sufficient to realise the same; and to make return of what you have done under this warrant
immediately upon its execution.

Dated, this..... day of....., 20

(*Seal of the Court*)

(*Signature*)

FORM No. 56

WARRANT OF IMPRISONMENT ON BREACH OF A BOND TO KEEP THE PEACE

(See section 491)

To the Superintendent (or Keeper) of the Civil Jail at.....

WHEREAS proof has been given before me and duly recorded that.....
(name and description) has committed a breach of the bond entered into by him to keep the peace, whereby he has forfeited to Government the sum of rupees..... ; and whereas the said.....(name) has failed to pay the said sum or to show cause why the said sum should not be paid, although duly called upon to do so, and payment thereof cannot be enforced by attachment of his movable property, and an order has been made for the imprisonment of the said.....(name) in the Civil Jail of the period of.....(term of imprisonment);

This is to authorise and require you, the said Superintendent (or Keeper) of the said Civil Jail to receive the said.....(name) into your custody, together with this warrant, and to keep him safely in the said Jail for the said period of(term of imprisonment), and to return this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 57

WARRANT OF ATTACHMENT AND SALE ON FORFEITURE OF BOND FOR GOOD BEHAVIOUR

(See section 491)

To the Police Officer in charge of the police station at.....

WHEREAS(name, description and address) did, on the.....day of....., 20....., give security by bond in the sum of rupees..... for the good behaviour of.....(name, etc., of the principal), and proof has been given before me and duly recorded of the commission by the said.....(name) of the offence ofwhereby the said bond has been forfeited; and whereas notice has been given to the said.....(name) calling upon him to show cause why the said sum should not be paid, and he has failed to do so to pay the said sum;

This is to authorise and require you to attach by seizure movable property belonging to the said.....(name) to the value of rupees.....which you may find within the district of....., and, if the said sum be not paid within....., to sell the property so attached, or so much of it as may be sufficient to realise the same, and to make return of what you have done under this warrant immediately upon its execution.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 58

WARRANT OF IMPRISONMENT ON FORFEITURE OF BOND FOR GOOD BEHAVIOUR

(See section 491)

To the Superintendent (*or Keeper*) of the Civil Jail at.....

WHEREAS.....(*name, description and address*) did, on the day of....., 20....., give security by bond in the sum of rupees..... for the good behaviour of.....(*name, etc., of the principal*), and proof of the breach of the said bond has been given before me and duly recorded, whereby the said.....(*name*) has forfeited to Government the sum of rupees....., and whereas he has failed to pay the said sum or to show cause why the said sum should not be paid although duly called upon to do so, and payment thereof cannot be enforced by attachment of his movable property, and an order has been made for the imprisonment of the said.....(*name*) in the Civil Jail for the period of.....(*term of imprisonment*);

This is to authorise and require you, the Superintendent (*or Keeper*), to receive the said.....(*name*) into your custody, together with this warrant, and to keep him safely in the said Jail for the said period of.....(*term of imprisonment*), returning this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20.....

(Seal of the Court)

(Signature)

DIWAKAR SINGH,
Joint Secretary & Legislative Counsel to the Govt. of India.